

Copycat Legislation: The Rising Influence of Special Interest Groups on American Policy

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Abstract

I study how statehouse resources shape reliance on special interest group originated “copycat” legislation based on templates. I compile a novel dataset on copycat legislation, bills, and politicians in all 50 states and the U.S. Congress. I document greater template originated text reuse in lower-resourced legislatures. I next evaluate bill sponsorship among politicians who switch from state to federal government to make a causal argument that legislative capacity shapes legislative autonomy. After entering the highly resourced U.S. Congress, legislators from lower-resourced statehouses sponsor less copycat legislation, while politicians from high-resourced statehouses sponsor slightly more.

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1 Introduction

Lobbying involves an exchange between interest groups and policymakers. Existing research emphasizes two broad channels of lobbying: quid pro quo exchange and informational lobbying (Bombardini and Trebbi, 2020). Interest groups may provide financial support to ideologically aligned politicians or provide expertise and other inputs that reduce the cost of policy work (e.g. DellaVigna, Durante, Knight and La Ferrara, 2016; Ban, Park and You, 2023). However, I study another channel of interest group support that is directly observable: the provision of legislative text.

The influence of interest groups could vary with the resources available to legislators (Hansen 1991, p. 103). There is also suggestive evidence that greater legislative professionalism decreases demand for information from lobbyists (Berkman, 2001). This motivates the central question of this paper: What is the causal effect of statehouse resources on the influence of special interest groups? This question is difficult to study because few state legislatures systematically collect and publish bill-level information on lobbying activity (Anzia, 2019; Butler and Miller, 2022).

I address this question using “copycat legislation,” or bills that reuse language from templates that special interest groups create. Templates consist of fill-in-the-blank policy language that legislators can introduce directly and modify (Hertel-Fernandez, 2014). I focus on templates from the American Legislative Exchange Council (ALEC) and the Public Leadership Institute (PLI), which are prolific producers of templates associated with the political right and left, respectively.¹ Both groups make their templates publicly accessible.

Two papers set up my contribution. Hertel-Fernandez (2014) is the closest benchmark and shows that states where legislators have access to fewer policy resources enact ALEC bills more often. Garlick, Kroeger and Pellaton (2025) exploit a sharp cut to California’s legislative budget. They find that interest group sponsored bills passed more often once the Assembly lost most of its policy staff. Burgess et al. (2016) is a computer science paper on detecting legislative text reuse that introduces a rigorous computational framework for identifying bills that reuse ALEC and ALICE templates. I build on all three papers in a couple of ways. First, I measure the continuous percentage of bill text that matches language from ALEC and PLI templates. Second, I follow politicians who transition from state legislatures to the high-capacity U.S. Congress and examine how their sponsorship of copycat legislation changes after the transition.

¹These interest groups cover a diverse set of partisan issues on their respective sides of the aisle. ALEC also drafts templates that reflect large corporate interests, including some policies that observers characterize as nonpartisan.

I accomplish this by measuring the text reuse from an interest group as the percentage of bill text that matches a template. I call this outcome the Percent of Text Reuse. Using this key outcome, I start my empirical analysis by establishing a descriptive relationship between legislative capacity and legislative autonomy. The pool of lower-resourced statehouses have 0.0739 percentage points (s.e. 0.0309) more text reuse than those in the pool of high-resourced statehouses in the full sample of bills, on average. The same comparison within the sample of laws results in an estimate of 0.0596 percentage points (s.e. 0.0188). These point estimates are modest in magnitude but this is expected due to the structure of the outcome. The percentage of text reuse outcome averages text reuse across the full universe of bills, including the large share of bills with no detected template language overlap.

I next enter salary and staff per legislator jointly. Both coefficient estimates are negative, and neither reaches statistical significance once I control for political ideology. The descriptive evidence therefore points towards overall institutional capacity rather than either observed component on its own. These results describe associations rather than causal effects.

Lastly, I construct an empirical design in order to study 189 politicians who switch from a state legislature to the U.S. Congress. I compare switchers from lower-resourced statehouses with switchers from high-resourced statehouses to make a causal argument. Both groups in this empirical design make the same transition into Congress, where the pool of politicians switching from lower-resourced statehouses experience a substantially larger change in legislative capacity. This comparison shows whether copycat sponsorship varies differentially with the capacity of the institution a politician leaves. Politicians from lower-resourced statehouses sponsor fewer copycat bills after entering Congress, while politicians from higher-resourced statehouses sponsor slightly more. The gap closes by about 0.12 percentage points, which is roughly a quarter of a standard deviation of the politician-year outcome. The staggered event study shows no statistically significant differential pre-trends and persistent negative post-switch estimates for the lower-resource group relative to the higher-resource group of switchers. This result points to a causal relationship between legislative capacity and legislative autonomy. Higher-resourced statehouses are less influenced by interest groups through the channel of copycat legislation.

2 Literature

My paper contributes to work on special interest group influence and legislative capacity by measuring text reuse from interest group templates. Templates are a direct instance of the idea that outside groups can subsidize the work of legislating. Potters and van Winden (1990,

1992) model lobbying as the transmission of information under asymmetric information. Hall and Deardorff (2006) recast lobbying as a legislative subsidy. Interest groups supply the time, expertise and legislation drafting effort to lawmakers who are aligned with their goals. Hirsch and Shotts (2015, 2018) show that outside actors can acquire informal agenda power by developing regulatory proposals when the capacity of decision makers is limited. A template provides such a subsidy in its most literal form, since the interest group drafts the statutory language.

I also contribute to work on policy production. Hansen (1991) and Berkman (2001) argue that professionalized legislatures depend less on outside sources of policy information. Since Policy production is costly, legislators working under tighter resource constraints have a greater reason to rely upon externally supplied legislative language. Mulligan and Shleifer (2005) formalize how such fixed costs shape policy adoption through the demand and supply for regulation. My model builds upon Mulligan and Shleifer (2005) and predicts an inverse relationship between legislative capacity and legislative autonomy. The descriptive and causal analysis then tests this prediction by asking whether lower-resourced legislatures exhibit more template-originated text reuse, and then by asking whether politicians who switch from state politics to Congress systematically change their sponsorship of copycat legislation.

There are two closely related papers. Hertel-Fernandez (2014) links legislative resources to the enactment of ALEC templates in the cross section. I extend Hertel-Fernandez (2014) by evaluating ALEC and PLI templates in the panel, and I establish a causal argument by introducing the switchers empirical design. Garlick, Kroeger and Pellaton (2025) is another closely related paper, where they leverage California’s Proposition 140 to evaluate the impact of a sharp cut to legislative expenditures for the 1991 to 1992 statehouse session. Proposition 140 cut legislative expenditures by 38 percent and shrunk statehouse staff. As a result, the authors found that interest group sponsored bills became more likely to pass. Their design leverages a sharp capacity shock within a single legislature, while mine trades that sharpness for coverage since I observe all 50 statehouses and follow the same politicians as they move across institutions. Both approaches point towards the argument that legislative capacity shapes legislative autonomy from special interest groups.

Burgess et al. (2016) is a computer science paper that introduces and tests a method for detecting legislative text reuse from interest group templates. The authors establish a rigorous framework for this and call it the Legislative Influence Detector. The Legislative Influence Detector screens candidate bill and template pairs using a similar two stage approach to my own, which I describe in detail in Section 5 of the paper. I also use section 5 to describe how my custom search engine diverges from that of Burgess et al. (2016) in the

first and second stage.

Other papers also use text-based methods to study the political influence of external forces on legislation. Yackee and Yackee (2006) analyze the content of roughly 1,700 comments on more than 30 federal rules and find that agencies favor business commenters over nonbusiness commenters in determining the content of final rules. Bertrand et al. (2021) scale up this analysis and leverage text similarity across federal rulemaking to trace how corporate philanthropy shapes the comments that nonprofits file.

3 Model

I develop a stylized model of legislative production in order to formalize the relationship between legislative capacity and reliance on externally supplied templates. The model builds on the fixed cost framework of Mulligan and Shleifer (2005) and on the assumption that lobbying subsidizes the legislative effort of aligned lawmakers (Hall and Deardorff, 2006). I condition on a statehouse having already decided to pursue a bill. This assumption isolates the production decision of a statehouse from the separate question of which issues a statehouse chooses to legislate on.

3.1 Environment

Consider a state s that has decided to produce bill i . As in Mulligan and Shleifer (2005), producing that bill without outside help requires a fixed amount of legislative effort $\rho > 0$. Let $K_s > 0$ denote legislative capacity, which is the internal resource and time endowment a statehouse draws upon to supply legislative effort. In particular, K_s captures staffing, salary, and the share of a full-time job that legislative service occupies in state s .

Capacity lowers the price of legislative effort, and I normalize the cost of one unit of effort to $1/K_s$. The state-specific cost of producing a bill entirely in house is then

$$\Phi_s = \frac{\rho}{K_s}. \quad (1)$$

Equation 1 holds the effort requirement ρ fixed, while capacity K_s does not change the legislative effort a bill requires. On the other hand, K_s shapes how expensive legislative effort is to supply internally. I treat K_s as conceptual capacity instead of assuming that any one observed component fully measures it.

Suppose that special interest group template m supplies part of the legislative work that bill i requires. Let $\theta_{ims} \in (0, 1]$ be the share of internal effort that is subsidized by the template. Thus, a larger θ_{ims} substitutes for more of the legislative effort of the statehouse.

The interest groups in this setting write templates for a national audience, so a template is not tailored towards local conditions. Let $\omega_{ims} \geq 0$ capture this mismatch, which covers substantive policy disagreement, partisan misalignment with the statehouse, and any local drafting requirements the template ignores. Thus, producing bill i using template m costs statehouse s

$$C_{ims} = \omega_{ims} + \frac{\rho}{K_s}(1 - \theta_{ims}). \quad (2)$$

The first term in Equation 2 is what the statehouse pays for language that does not fully align with its own objectives, while the second term captures the remaining internal effort after the template has supplied share θ_{ims} of the legislative effort.

3.2 The Net Benefit of a Template

The benefit of using a template is the internal legislative cost that the statehouse avoids by relying on externally supplied language. I therefore define the net benefit of template m relative to producing bill i entirely in house as the difference between the two production costs:

$$\begin{aligned} \Pi_{ims} &= \Phi_s - C_{ims} \\ &= \frac{\rho}{K_s} - \left[\omega_{ims} + \frac{\rho}{K_s}(1 - \theta_{ims}) \right] \\ &= \frac{\rho\theta_{ims}}{K_s} - \omega_{ims}. \end{aligned} \quad (3)$$

Equation 3 shows that the net benefit of a template is the internal legislative cost $\rho\theta_{ims}/K_s$ that it saves, minus mismatch cost ω_{ims} .

3.3 Legislative Capacity and Template Reliance

The central comparative static comes directly from Equation 3. Formally, it must follow that:

$$\frac{\partial \Pi_{ims}}{\partial K_s} = -\frac{\rho\theta_{ims}}{K_s^2} < 0. \quad (4)$$

Prediction 1: The net benefit of copycat legislation is decreasing in legislative capacity. A lower-capacity statehouse pays more to internally supply legislative effort. Whatever effort a template contributes is therefore worth more to that statehouse compared

to a higher-capacity legislature. A higher-capacity statehouse produces the same internal effort at a lower cost. In turn, the value of the template subsidy falls.

A statehouse uses a template when $\Pi_{ims} \geq 0$, or equivalently when

$$\omega_{ims} \leq \frac{\rho\theta_{ims}}{K_s}. \quad (5)$$

In line with Prediction 1, higher capacity lowers the right hand side of Equation 5. Holding bill and template characteristics fixed, fewer templates generate sufficient cost savings to offset their mismatch cost as capacity rises. The empirical counterpart to this stylized model is therefore how frequently template language appears across the legislative agenda of a statehouse. My empirical outcome captures this measure by averaging the percent of text reuse across the full universe of bills.

K_s bundles the resources and time available for legislative work. Because of this, my model does not require any individual component of capacity – such as salary or staffing – to independently explain template reliance. Instead, these components jointly determine how costly it is to internally supply legislative effort. This distinction matters for how I interpret the results in Section 6.

4 Data

The main outcome in this paper is *Percent Text Reuse*, which captures the percentage of bill text that matches special interest group templates. I use *bills* to refer to the full sample of pre-filed or introduced legislation, and I define *laws* as the subset of those bills that became policy.² I analyze the full sample of bills because it captures where template-originated language enters the legislative process. On the other hand, I analyze laws because enactment tells us whether that language becomes binding.

I report the outcome itself in percent, while I report its differences in percentage points which the tables abbreviate as “p.p.” My descriptive analysis uses bill-level observations, while my causal analysis uses politician-year observations. I draw data from three sources: ALEC and PLI templates, bill and sponsor data from LegiScan, and legislative capacity and partisan data from the National Conference of State Legislatures (NCSL).

²Depending on the state, legislation becomes policy when the Governor signs a bill into law, allows a bill to take effect without a signature, or when the statehouse overrides a Governor veto.

Table 1: Summary Statistics

	Mean	SD	Min	Max
Politician-Year Level:				
Percent Text Reuse	0.080%	0.445 p.p.	0%	12%
N = 2046				
Legislation Level:				
Percent Text Reuse	0.155%	1.887 p.p.	0%	90%
N = 1500728				
Laws:				
Percent Text Reuse	0.089%	1.160 p.p.	0%	78%
N = 414493				

This table reports summary statistics for the politician-year switcher sample and the bill-level sample in the 50 states. Laws contain the subset of bills that became policy. The politician-year sample contains 189 primary sponsors who switched from a state legislature to the federal level. Measures of standard deviation in percentage points (p.p.).

4.1 Templates

I draw on 578 ALEC templates and 114 PLI templates. Both sets use a fill-in-the-blank structure. I scrape the text from each group website and record the creation year that ALEC and PLI report for each template. For a handful of PLI templates from 2016 or earlier, I use archived pages from the Wayback Machine when the current PLI website does not report a creation year.³ I match a template only to bills introduced in the template creation year or later.

4.2 LegiScan

LegiScan provides bill text, amendment text, bill titles, status, dates, and sponsor information for legislative sessions in all 50 states and the U.S. Congress. The analysis period runs from 2010 to 2024. The sponsor information includes name, party, district, and sponsor order, which lets me identify the primary sponsor for each bill. The state-level sample contains 1,500,728 distinct bills, of which 414,493 became law.

I also observe 104,138 distinct bills from the U.S. Congress. Table 1 summarizes the bill-level and politician-year samples. The mean percent of text reuse is 0.155% among bills, 0.089% among laws, and 0.080% at the politician-year level in the switcher sample. Figure 1

³See <https://web.archive.org>

Figure 1: Number of Bills Introduced in State Legislatures and U.S. Congress

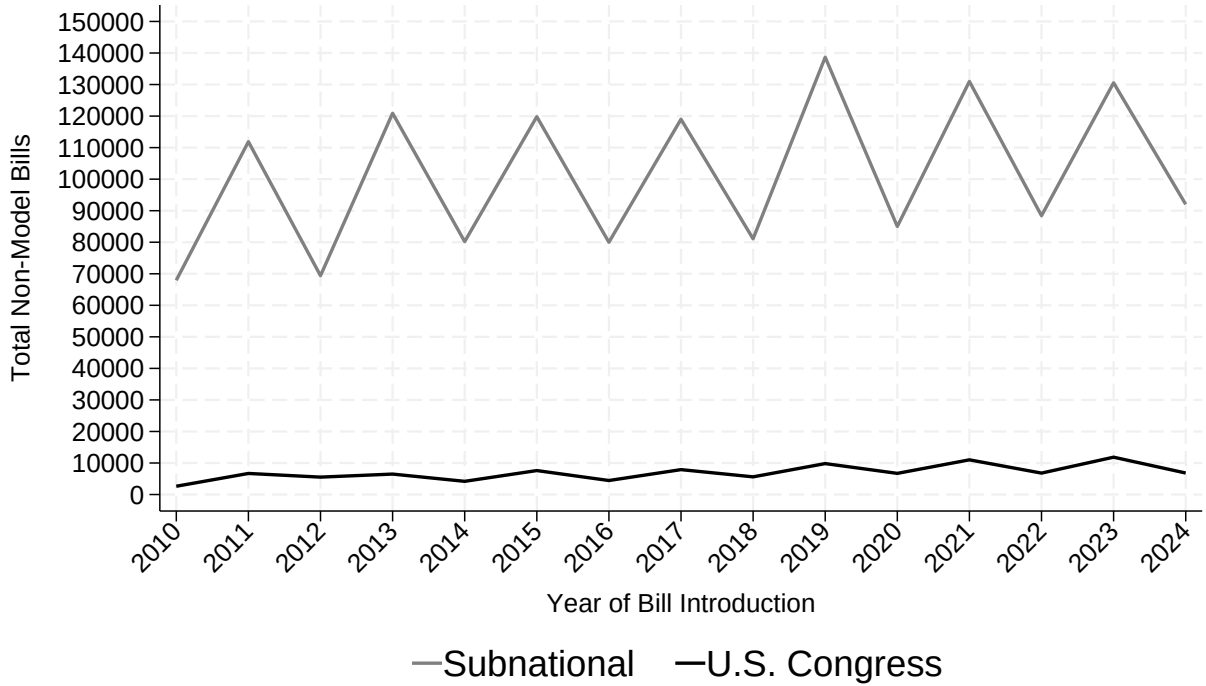


Figure 1: This figure depicts the annual number of bills that state legislatures and the U.S. Congress pre-filed or introduced from 2010 to 2024.

places the scale of the data in context. State legislatures introduce substantially more bills each year than the U.S. Congress over the 2010–2024 period.

4.3 National Conference of State Legislatures

I use NCSL measures of legislative capacity and partisan control. Importantly, I observe the 2021 legislator salary and staff data at the state level. The NCSL resource classification groups statehouses into five capacity categories, from lowest to highest resourced. The classification reflects time devoted to legislative work, compensation, and staff size. The time component includes work in session and captures whether legislative service more closely resembles a full-time, hybrid, or part-time job. Figure 2 maps these categories of legislative capacity. The map shows the differential levels of salary and staff support across the 50 statehouses. North Dakota, South Dakota, Wyoming and Montana form the lowest-resourced category. Michigan, Pennsylvania, California and New York form the highest-resourced category. The salary and staff regressions use the underlying state-level measures rather than category averages.

In the descriptive comparisons using the categorical resource measure, I use the same

Figure 2: State Resources Map

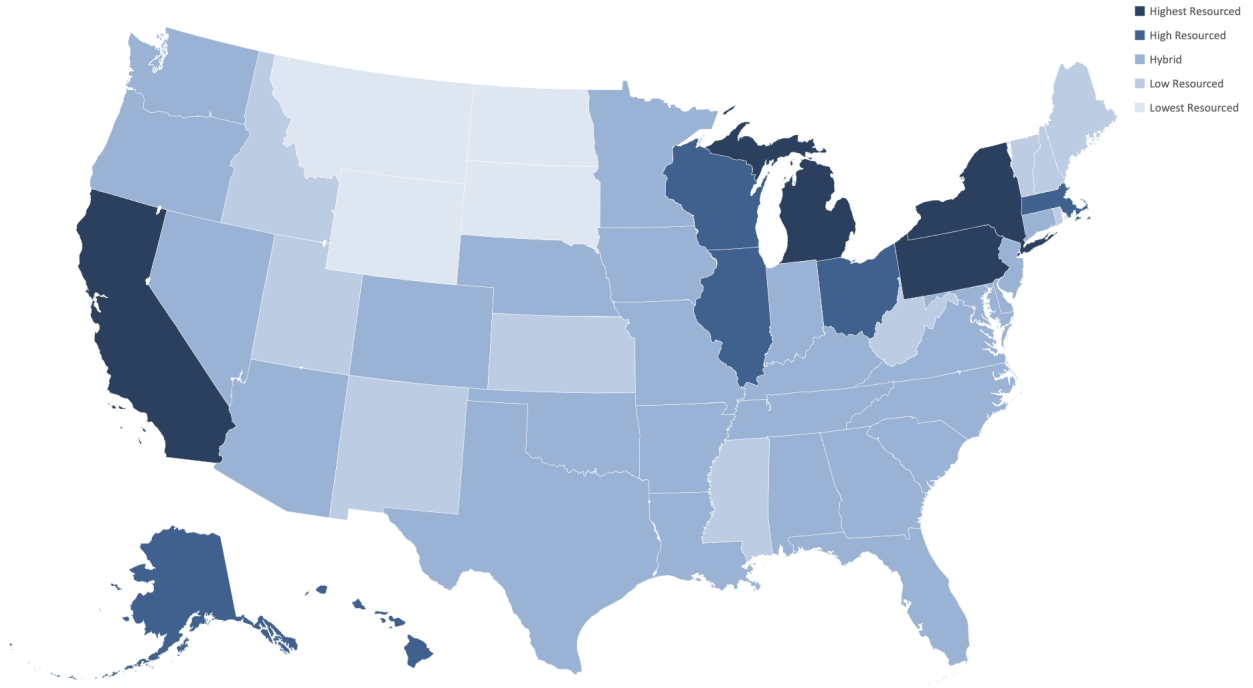


Figure 2: The darkest blue statehouses had an average of \$96,724.20 in legislator salary and about 2,209 people in total staff. Dark blue statehouses had an average of \$62,606.20 in legislator salary and about 636 people in total staff. Medium-blue (hybrid) statehouses averaged \$29,688.70 in legislator salary and about 587 people in total staff. The light blue statehouses had an average of \$12,627.40 in legislator salary and about 258 people in total staff. Finally, the lightest blue statehouses averaged \$10,738.10 in legislator salary and about 140 people in total staff. Compensation and total staff data come from NCSL 2021 measures.

dichotomy as the causal analysis: resource levels 1–3 are low-to-hybrid resourced, and levels 4–5 are high-to-highest resourced. I do not treat the five-category measure as a linear cardinal variable. NCSL also provides annual data on partisan control from 2010 to 2024, including the majority party in each legislative chamber and the governor party. Nebraska is unicameral and officially nonpartisan.⁴

5 Methods

5.1 Search Engine

My search engine follows the two-stage architecture that Burgess et al. (2016) introduce in the Legislative Influence Detector. That architecture screens candidate pairs with Elastic-

⁴The NCSL also reports the number of partisan representatives in the legislative bodies of 49 states and the U.S. Congress.

Figure 3: Search Engine Example

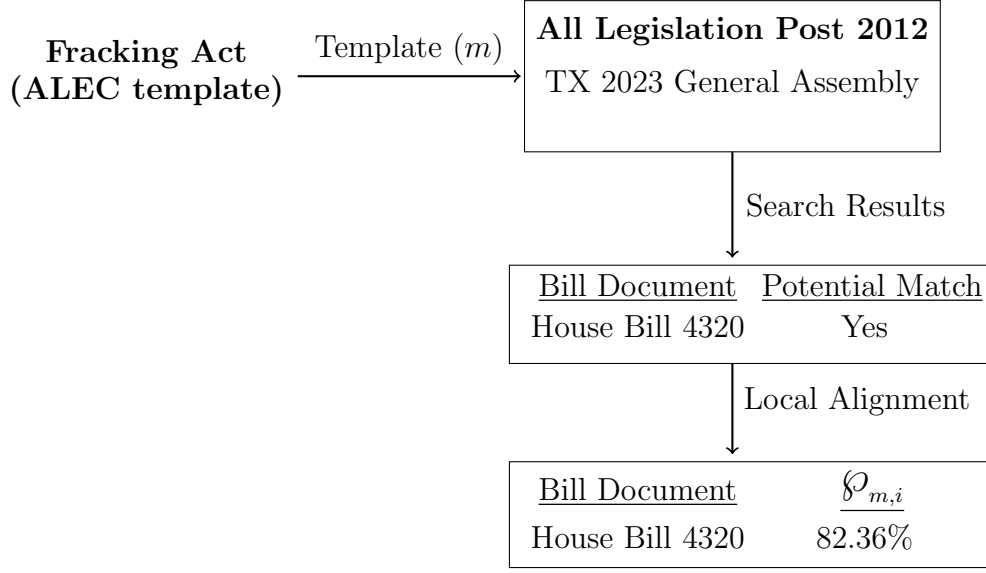


Figure 3: This figure illustrates the matching process using the 2012 ALEC template “The Disclosure of Hydraulic Fracturing Fluid Composition Act.” Elasticsearch first returns Texas House Bill 4320 as a potential match, and local alignment then measures an 82.36% match. $\mathcal{P}_{m,i}$ measures percent text reuse between template m and bill i .

search before scoring them with local alignment. I depart from their implementation in the scoring stage, as described below.

Before matching bills and templates, I convert every document into standardized plain text. The preprocessing procedure removes formatting artifacts and preserves substantive statutory language. I then index each bill as a separate document in Elasticsearch. Elasticsearch is a text search system that retrieves documents containing relevant phrases. Next, I decompose each template into contiguous segments of statutory language. To satisfy Elasticsearch query-length constraints, I then divide segments exceeding 100 characters into smaller contiguous segments. The matching algorithm searches over statutory language of varying length as opposed to using word sequences of a fixed length. The search engine process then proceeds in two stages. The first stage uses Elasticsearch to identify a reduced set of potential template and bill pairings. The algorithm searches the relevant state-session collection of bills, $\mathcal{I}$, for each template m and returns bills containing one or more phrases from m . This stage screens candidate pairs instead of measuring final text reuse.

The second stage uses local alignment to evaluate each candidate pairing. At this stage, a token based exact-match algorithm identifies matching statutory phrases and calculates $\mathcal{P}_{m,i} \in [0, 100]$, the percentage of bill i that reuses text from template m . Burgess et al. (2016) score surviving pairs with Smith–Waterman local alignment. I instead require exact

Figure 4: Match Example

THE DISCLOSURE OF HYDRAULIC FRACTURING FLUID COMPOSITION ACT	By: Morales Shaw H.B. No. 4320
Be it enacted by the Legislature of the State of [state]: Section 1. (Disclosure of Composition of Hydraulic Fracturing Fluids) (A) The [relevant state agency] by rule shall: (1) require an operator of a well on which a hydraulic fracturing treatment is performed to: (a) complete the form posted on the hydraulic fracturing chemical registry Internet website of the Ground Water Protection Council and the Interstate Oil and Gas Compact Commission with regard to the well; (b) include in the form completed under Paragraph (A): (i) the total volume of water used in the hydraulic fracturing treatment; and (ii) each chemical ingredient that is subject to the requirements of 29 C.F.R. Section 1910.1200(g)(2), as provided by a service company or chemical supplier or by the operator, if the operator provides its own chemical ingredients; (c) post the completed form described by Paragraph (A) on the website described by that paragraph or, if the website is discontinued or permanently inoperable, post the completed form on another publicly accessible Internet website specified by the [relevant state agency]; (d) submit the completed form described by Paragraph (A) to the [relevant state agency] with the well completion report for the well; and (e) in addition to the completed form specified in Paragraph (D), provide to the [relevant state agency] a list, to be made available on the Internet website of the Ground Water Protection Council and the Interstate Oil and Gas Compact Commission or, if necessary, another publicly accessible website, of all other chemical ingredients not listed on the completed form that were intentionally included and used for the purpose of creating a hydraulic fracturing treatment for the well. The [relevant state agency] rule shall ensure that an operator, service company, or supplier is not responsible for disclosing ingredients that: (i) were not purposely added to the hydraulic fracturing treatment; (ii) occur incidentally or are otherwise 42 unintentionally present in the treatment; or (iii) in the case of the operator, are not disclosed to the operator by a service company or supplier. The rule shall not require that the ingredients be identified based on the additive in which they are found or that the concentration of such ingredients be provided; (2) require a service company that performs a hydraulic fracturing treatment on a well or a supplier of an additive used in a hydraulic fracturing treatment on a well to provide the operator of the well with the information necessary for the operator to comply with Subdivision (1); (3) prescribe a process by which an entity required to comply with Subdivision (1) or (2) may withhold and declare certain information as a trade secret including the identity and amount of the chemical ingredient used in a hydraulic fracturing treatment; (4) require a person who desires to challenge a claim of entitlement to trade secret protection under Subdivision (3) to file the challenge not later than the second anniversary of the date the relevant well completion report is filed with the [relevant state agency]; (5) limit the persons who may challenge a claim of entitlement to trade secret protection under Subdivision (3) to: (a) the landowner on whose property the relevant well is located; (b) a landowner who owns property adjacent to property described by Paragraph (a); or	A BILL TO BE ENTITLED AN ACT relating to the disclosure of certain chemicals included in hydraulic fracturing treatments. BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF TEXAS: SECTION 1. Section 91.851(a), Natural Resources Code, is amended to read as follows: (a) The commission by rule shall: (1) require an operator of a well on which a hydraulic fracturing treatment is performed to: (A) complete the form posted on the hydraulic fracturing chemical registry Internet website of the Ground Water Protection Council and the Interstate Oil and Gas Compact Commission with regard to the well; (B) include in the form completed under Paragraph (A): (i) the total volume of water used in the hydraulic fracturing treatment; and (ii) each chemical ingredient that is subject to the requirements of 29 C.F.R. Section 1910.1200(g)(2), as provided by a service company or chemical supplier or by the operator, if the operator provides its own chemical ingredients; (C) post the completed form described by Paragraph (A) on the website described by that paragraph or, if the website is discontinued or permanently inoperable, post the completed form on another publicly accessible Internet website specified by the commission; (D) submit the completed form described by Paragraph (A) to the commission with the well completion report for the well; and (E) in addition to the completed form specified in Paragraph (D), provide to the commission a list, to be made available on a publicly accessible website, of all other chemical ingredients not listed on the completed form that were intentionally included and used for the purpose of creating a hydraulic fracturing treatment for the well. The commission rule shall ensure that an operator, service company, or supplier is not responsible for disclosing ingredients that: (i) were not purposely added to the hydraulic fracturing treatment; (ii) occur incidentally or are otherwise unintentionally present in the treatment; or (iii) in the case of the operator, are not disclosed to the operator by a service company or supplier. The commission rule shall not require that the ingredients be identified based on the additive in which they are found or that the concentration of such ingredients be provided; (2) require a service company that performs a hydraulic fracturing treatment on a well or a supplier of an additive used in a hydraulic fracturing treatment on a well to provide the operator of the well with:

Figure 4: The left-hand side shows an ALEC template on hydraulic fracturing. The right-hand side shows Texas House Bill 4320, which the search engine identifies as an 82.36% match. Gold highlights indicate template-originated text reuse and correspond across the two documents. Pink highlights indicate fill-in-the-blank portions.

token matches and convert the result into a continuous share of the bill. The algorithm counts the number of words in a bill from validated matching passages and divides that amount by the total quantity of words in the bill. Figure 3 illustrates this two-stage procedure.

I only retain the bill-template pairing with the highest Percent Text Reuse in situations when a bill matches to multiple templates. This choice identifies the clearest reuse relationship. It also avoids inflating reuse, since templates sometimes share language mechanically or coincidentally. On the other hand, a template may still match to many different bills.

Figure 4 provides an example of a bill to template match. Here, the gold highlights indicate language that the search engine identifies as text reuse, while the pink highlights indicate the fill-in-the-blank portions of the corresponding template. Additional matching examples appear in the appendix. Upon completion of the two stage process, I assign 0% to bills without validated template-originated text reuse. In particular, a zero indicates that the search process did not identify statutory phrases surviving the exact-match local alignment stage. This does not mean that a bill and template share no common words. Figure 5 shows

Figure 5: Percent of Bills and Laws With Text Reuse

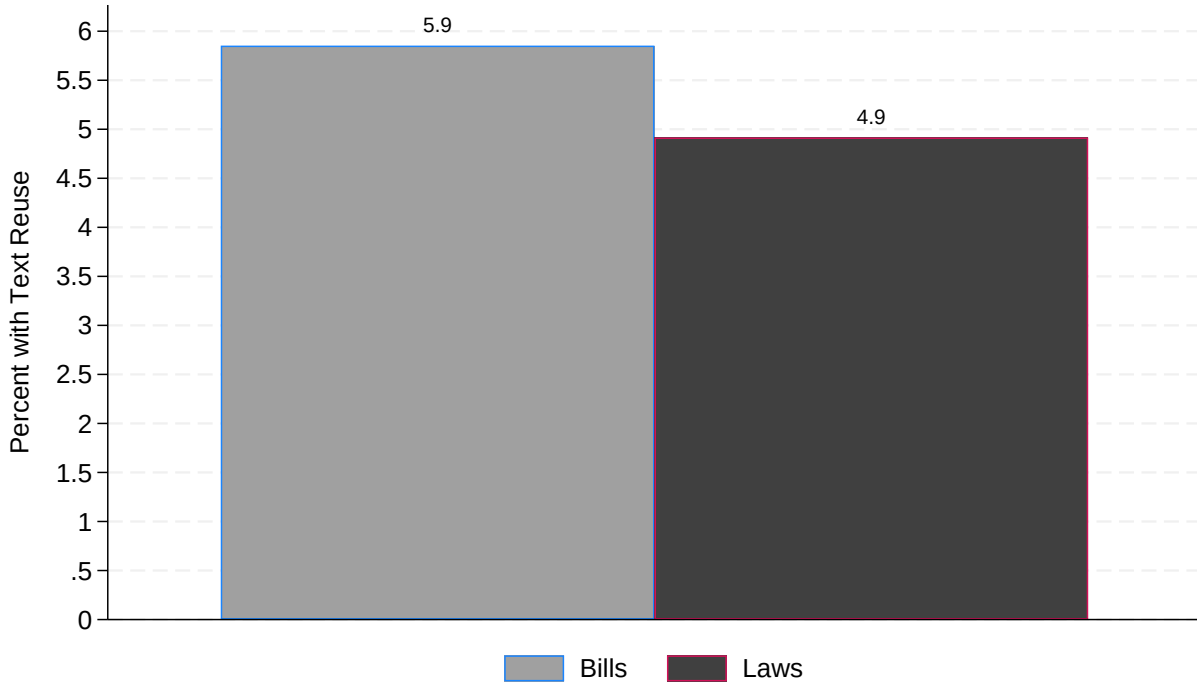


Figure 5: This bar graph reports the share of bills and laws with any detected text reuse ($\mathcal{O}_{m,i} > 0$) in the 50 statehouses. The search process detects text reuse in 5.9% of bills and 4.9% of laws.

that templates appear in a minority of observations; 5.9% of bills and 4.9% of laws have any detected text reuse.

A matched phrase must contain at least five consecutive words appearing in both documents in order to avoid counting trivial statutory overlap as substantive reuse. This requirement drops matches that rest only on common legal fragments such as “in the state of.” Because the percent of text reuse outcome utilizes matching passages instead of isolated words, generic function words have little influence on this outcome.

Legislators may add state-specific provisions, remove sections, or combine language from multiple sources. It follows that genuine copycat bills need not approach complete textual overlap. Figure 6 provides a validation check, where matches between bills and templates concentrate near the template creation year. A small number of negative values arise from the fact that ALEC and PLI sometimes convert existing state legislation into a template.

Figure 6: Timing Distribution of Copycat Matches

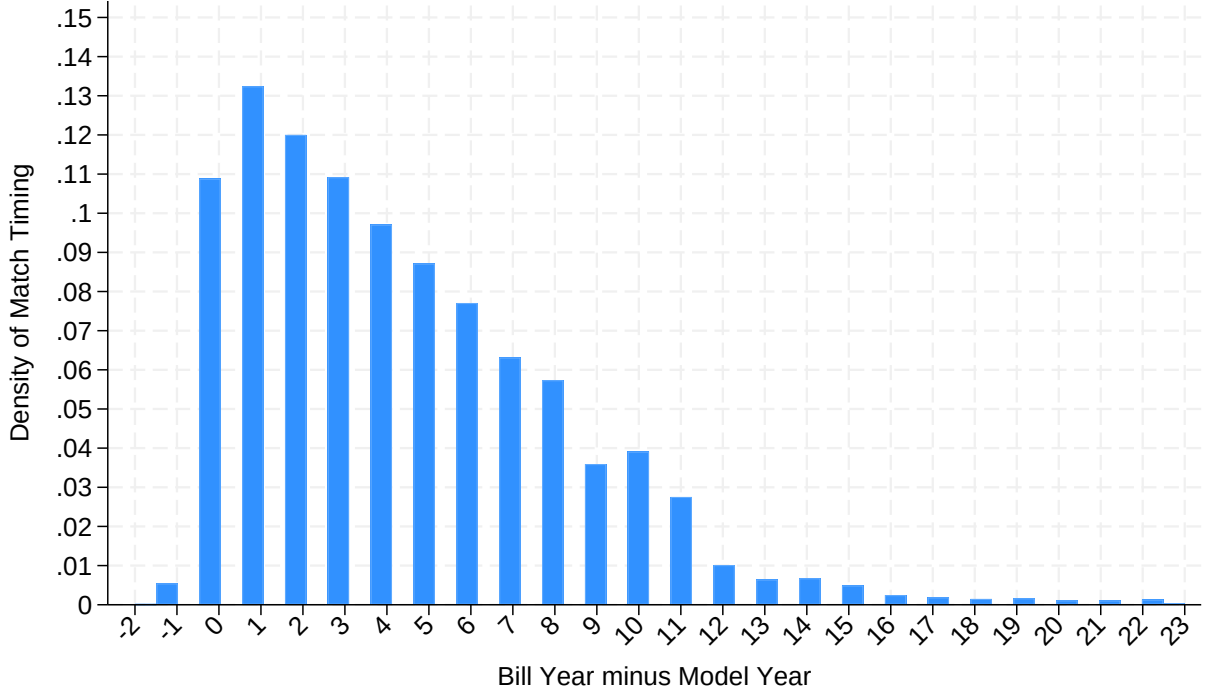


Figure 6: This figure depicts the distribution of match timing, defined as bill year minus template creation year. Template years range from 2001 to 2024 and bill years range from 2010 to 2024.

5.2 Empirical Strategy

5.2.1 Descriptive Analysis

I use linear regressions to establish the descriptive relationship between statehouse capacity and Percent Text Reuse. I first estimate the broader resource comparison:

$$\mathcal{P}_{ist} = \beta_1 \text{LowerResourced}_s + \delta X_{st} + \lambda_t + \epsilon_{ist}, \quad (6)$$

where $\mathcal{P}_{ist}$ represents the percent text reuse for bill i in state s and year t . The indicator *Lower Resourced* dichotomizes the NCSL resource categories into two pools, equaling one for NCSL resource levels 1 through 3 and zero for resource levels 4 and 5. I exclude X_{st} and λ_t in the baseline specification, where X_{st} includes controls for the political majority party of the lower chamber of s at time t , that of its upper chamber, and the political party of its governor.

I observe measures for salary and staff per legislator in the 2021 cross section and at the state level, and enter both variables in the same specification in order to avoid treating

either component as an isolated measure of capacity:

$$\mathcal{O}_{ist} = \beta_1 \textit{Salary}_s + \beta_2 \textit{Staff}_s + \epsilon_{ist}, \quad (7)$$

I also estimate the component specification with political controls that vary by state and year and with year fixed effects:

$$\mathcal{O}_{ist} = \beta_1 \textit{Salary}_s + \beta_2 \textit{Staff}_s + \delta X_{st} + \lambda_t + \epsilon_{ist}, \quad (8)$$

where X_{st} includes the majority party in the statehouse lower chamber, majority party in the statehouse upper chamber, and governor party. Salary and staff do not vary over time in my data, so state fixed effects would absorb these covariates if they were to be included. Standard errors are clustered at the state level. I estimate each descriptive relationship for the full sample of bills and separately for laws.

5.2.2 Switchers

I evaluate the causal effect of legislative capacity using politicians who move from state legislatures to the U.S. Congress. The outcome is the politician-year mean percent text reuse among bills for which the politician is the primary sponsor. The sample contains 189 switchers. I begin this analysis with the two-way fixed effects specification:

$$Y_{it} = \alpha_i + \lambda_t + \beta_1 (\textit{Treat}_i \times \textit{Post}_t) + \epsilon_{it}, \quad (9)$$

where $\textit{Treat}_i = 1$ is for politicians originating from resource levels 1 through 3 and $\textit{Treat}_i = 0$ for politicians originating from resource levels 4 and 5. $\textit{Post}_t$ equals one after the politician enters Congress, and is zero beforehand. This event timing $\textit{Post}_t$ is absorbing in the data, where no politician goes back to the state level after transitioning to the federal level. α_i and λ_t denote politician and year fixed effects, and I cluster the standard errors at the politician level. The coefficient is:

$$\beta_1 = (\mathbb{T}_{\textit{post}} - \mathbb{C}_{\textit{post}}) - (\mathbb{T}_{\textit{pre}} - \mathbb{C}_{\textit{pre}}), \quad (10)$$

where $\mathbb{T}$ denotes switchers from lower-resourced statehouses and $\mathbb{C}$ denotes switchers from higher-resourced statehouses. The comparison group is useful because these politicians move from one relatively high-capacity institution to another. Treated politicians instead experience a larger increase in legislative capacity. Politicians enter Congress in different years. I therefore also use the interaction-weighted event-study estimator introduced by Sun and Abraham (2021), which addresses treatment-effect heterogeneity under staggered treatment

timing:

$$Y_{it} = \alpha_i + \lambda_t + \sum_{g \in G} \mu_g \mathbf{1}\{t - E_i \in g\} + \gamma X_{ist} + \epsilon_{it}, \quad (11)$$

where E_i denotes the year politician i first enters Congress and $t - E_i$ denotes event time. I omit $t = -1$, the year before the transition. The baseline specification includes politician and year fixed effects; the robustness specification also controls for legislative majority and governor party in the original state of the politician. The standard errors are clustered at the politician level.

Identification requires two conditions. Parallel trends must hold between the lower and higher-resource pools of switchers in the pre-period. Percent Text Reuse must also show no differential anticipatory change prior to the Congressional entry of the switchers. This empirical specification does not require the two groups to have the same pre-switch level of Percent Text Reuse.

6 Results

6.1 Descriptive Evidence

Figure 7 first describes the evolution of Percent Text Reuse from ALEC and PLI templates from 2010 to 2024. ALEC-originated text reuse sits higher throughout the period. Both interest groups show more mean text reuse towards the end of the sample period than near the start of the period.

I now turn to the relationship between legislative capacity and Percent Text Reuse. I build it up in three steps. I start with the broad comparison between lower- and higher-resourced statehouses. I then show the time pattern underneath it. Only then do I ask whether either observed component of capacity accounts for the relationship on its own.

Table 2 reports the broad comparison. In the full sample of bills, lower-resourced statehouses have 0.0739 percentage points more Percent Text Reuse in the uncontrolled specification. That estimate is statistically significant at the 5 percent level. It attenuates to 0.0326 and loses significance once I add year fixed effects and political controls. Among laws, the lower-resource estimate is 0.0596 percentage points without controls and 0.0542 with them. Both reach statistical significance at the 1 percent level. The law results therefore give the more robust cross-sectional relationship between the broad NCSL resource grouping and template-originated text reuse.

Figure 8 shows the year-by-year pattern underneath that comparison. I group resource

Figure 7: Percent Text Reuse from ALEC and PLI, by Year

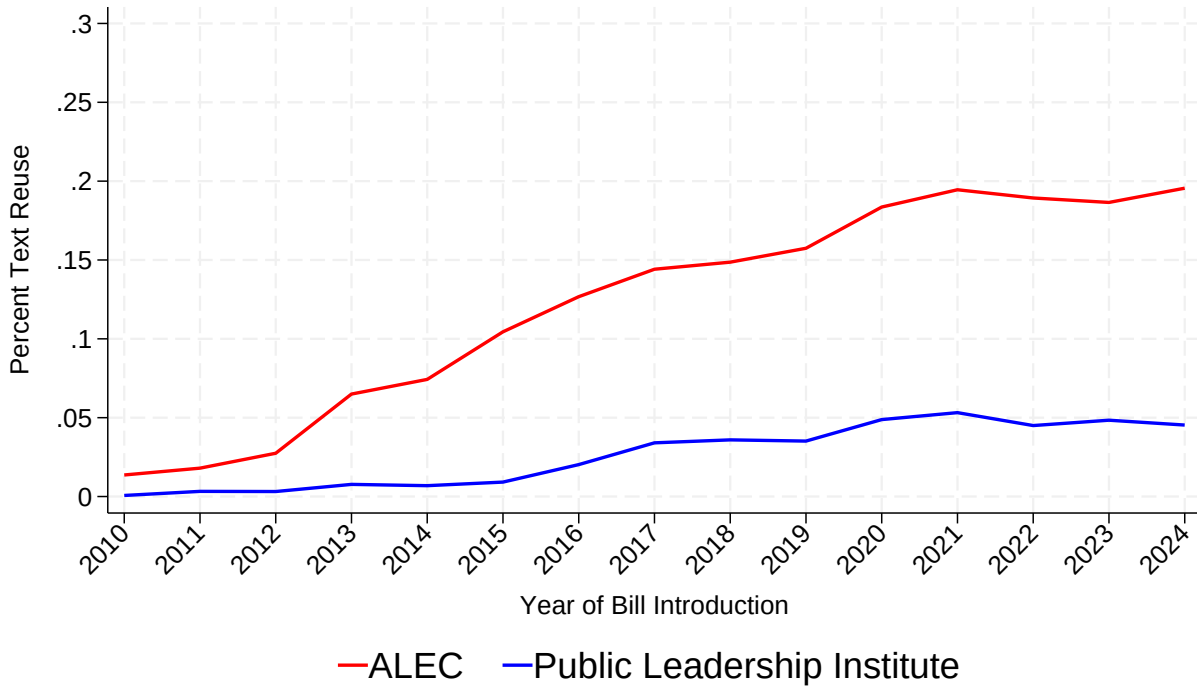


Figure 7: This figure depicts mean Percent Text Reuse within the full sample of bills in the 50 states from 2010 to 2024. The red line reports text reuse from ALEC templates and the blue line reports text reuse from PLI templates.

levels 1–3 as low-to-hybrid resourced and levels 4–5 as high-to-highest resourced. Mean Percent Text Reuse is higher in the lower-resource group in every year of the sample period. This pattern is directionally consistent with Prediction 1 of the model.

Table 3 then asks whether either observed component of capacity independently accounts for this relationship. I enter salary and staff per legislator jointly. Salary has a negative coefficient in all four specifications, but only the uncontrolled bill specification reaches statistical significance. In that specification, a one-thousand-dollar increase in annualized salary corresponds to a 0.00122 percentage point reduction in Percent Text Reuse. The controlled bill coefficient equals -0.000669 and does not reach statistical significance. Among laws, the salary coefficients are smaller and statistically insignificant. The coefficient estimate on staff per legislator is also negative in each specification in Table 3. None of these coefficient estimates are statistically significant among the sample of laws. Thus, the data does not

Table 2: Lower-Resourced Statehouses and Percent Text Reuse

	Dependent variable: Percentage of Text Reuse			
	Bills		Laws	
	(1)	(2)	(3)	(4)
Lower-Resourced	0.0739** (0.0309)	0.0326 (0.0250)	0.0596*** (0.0188)	0.0542*** (0.0160)
Year FEs		✓		✓
Controls		✓		✓
Observations	1500728	1500728	414493	414493

Coefficient estimates from linear regressions. The outcome is Percent Text Reuse in the 50 states. Columns (1) and (2) report coefficient estimates on an indicator for lower-resourced statehouses in the full sample of bills. Columns (3) and (4) report coefficient estimates on an indicator for lower-resourced statehouses in the sample of laws. Even-numbered columns include year fixed effects and controls for house majority, senate majority, and governor party. Standard errors are clustered at the state level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Table 3: Legislative Capacity Components and Percent Text Reuse

	Dependent variable: Percentage of Text Reuse			
	Bills		Laws	
	(1)	(2)	(3)	(4)
Salary	-0.00122** (0.000481)	-0.000669 (0.000477)	-0.000289 (0.000427)	-0.000195 (0.000379)
Staff to Legislator Ratio	-0.00243 (0.00321)	-0.00284 (0.00367)	-0.00387 (0.00305)	-0.00432 (0.00312)
Year FEs		✓		✓
Controls		✓		✓
Observations	1500728	1500728	414493	414493

Coefficient estimates from linear regressions. The outcome is Percent Text Reuse from all 50 states. Salary captures the annualized 2021 legislator salary in thousands of dollars. Staff to Legislator Ratio captures the 2021 staff-to-legislator ratio. Every specification includes salary and staff jointly. Columns (1) and (2) report coefficient estimates from the full sample of bills. Columns (3) and (4) report coefficient estimates from the sample of laws. Even-numbered columns include year fixed effects and controls for house majority, senate majority, and governor party. Standard errors are clustered at the state level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Figure 8: Mean Percent Text Reuse by Legislative Resources

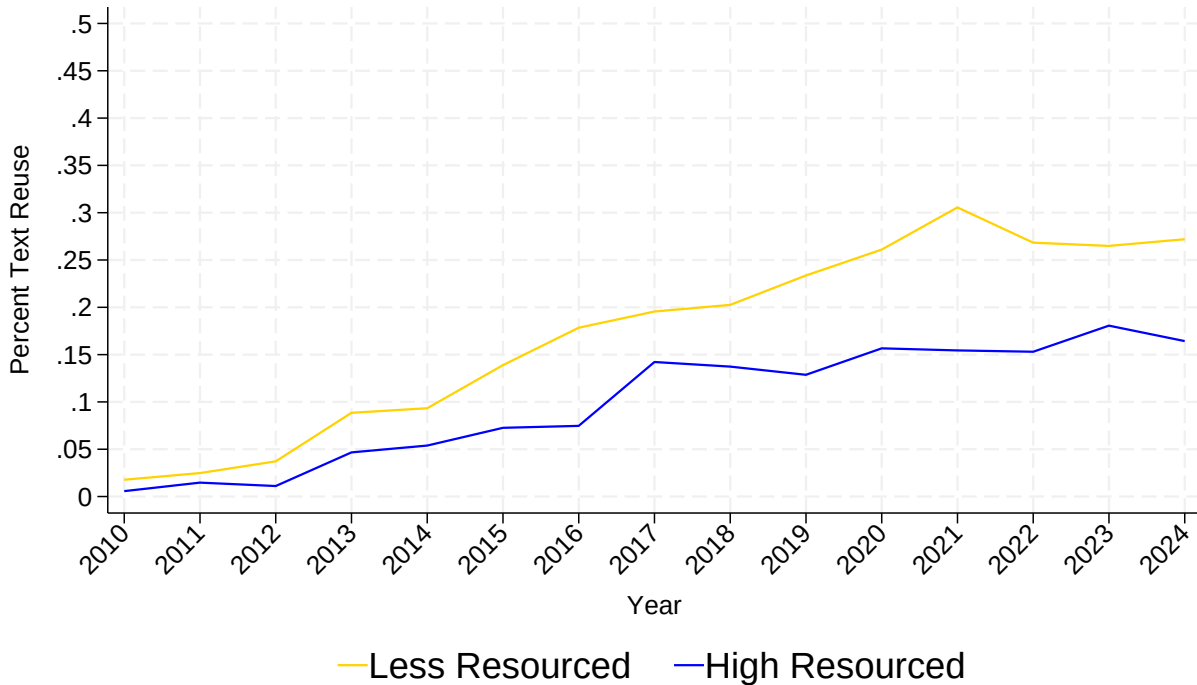


Figure 8: This figure depicts mean Percent Text Reuse in the full sample of state bills from 2010 to 2024. The lower-resource group contains NCSL resource levels 1–3, while the higher-resource group contains levels 4–5.

point towards salary or staffing as an independent driver of the relationship between legislative capacity and legislative autonomy.

Figure 9 presents this horse race comparison between salary and staff visually. I standardize both components so that their magnitudes are directly comparable. The salary estimate is negative and statistically significant here, while the staff-per-legislator estimate is near zero and is not statistically significant. This specification includes year fixed effects but no partisanship controls.

I repeat both descriptive exercises in the online appendix on a restricted sample that drops copycat bills with only trivial detected reuse and retains bills with either no detected reuse or more than 10 percent reuse. Table A1 shows the same pattern as the main results, where the coefficient estimate on the lower-resource indicator remains statistically significant under the sample of laws in both the baseline and robustness specification. These coefficient estimates become insignificant in the robustness specification under the sample of bills.

The descriptive evidence consistently points to an inverse relationship between legislative capacity and template-originated text reuse. However, the strength of that evidence varies

Figure 9: Capacity Components and Percent Text Reuse (Standardized)

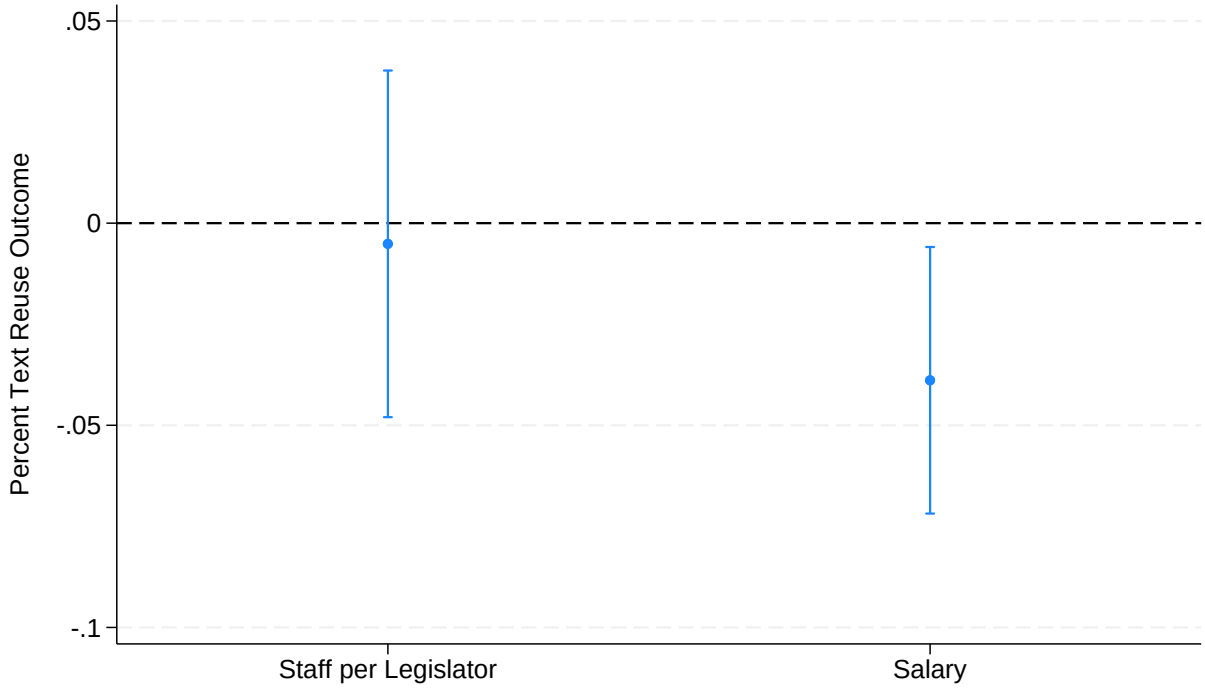


Figure 9: This figure reports a joint regression of Percent Text Reuse on standardized 2021 annualized legislator salary and standardized 2021 staff per legislator, with year fixed effects. Standard errors are clustered at the state level.

across the capacity measures I use. The broad NCSL classification is robust among the sample of laws. The salary and staffing components lose their independent robustness once I introduce partisanship controls. This points to overall institutional capacity rather than to any single observable component of it. Neither salary nor staff per legislator survives in the robustness component specifications. One plausible driver of the broad NCSL measure is therefore its time dimension. That dimension reflects the full or part time character of legislative service, or more precisely, time spent in session. The NCSL resource levels reflect the proportion of a full time job spent legislating. I offer this as a plausible interpretation of the law results rather than as an identified mechanism.

6.2 Politicians Switching to U.S. Congress

These estimates are small because I average Percent Text Reuse across the full universe of bills. Most of those bills contain no detected template-originated language. The law estimate of 0.0542 percentage points is roughly five percent of a standard deviation of the outcome. These coefficients capture a shift in how often template-originated text appears across the

Figure 10: Percent Text Reuse Before and After Congressional Entry

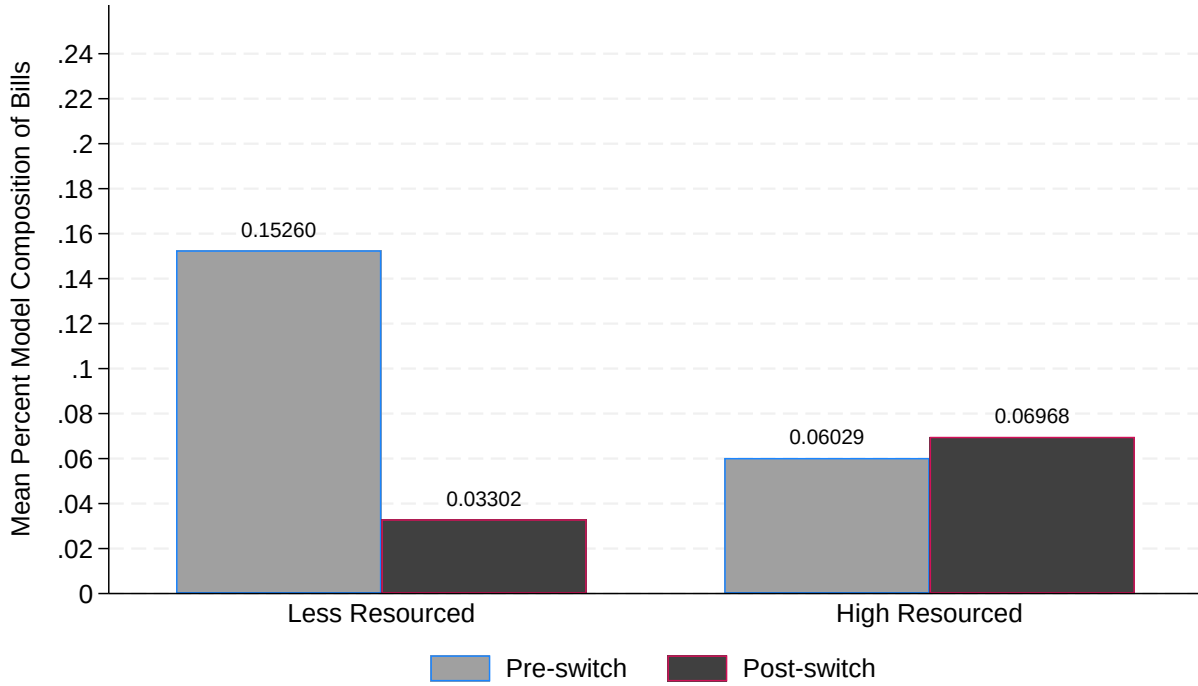


Figure 10: This figure pools switchers before and after their transition from a state legislature to the U.S. Congress. The y-axis is mean Percent Text Reuse among bills for which the switcher is the primary sponsor. The sample contains 189 switchers: 4, 11, 107, 16, and 51 politicians from resource levels 1, 2, 3, 4, and 5, respectively.

legislative agenda. They do not capture the amount of template language inside a typical copycat bill. That distinction fits the model. There K_s stands for the full bundle of internal legislative capacity rather than any single observed component.

My empirical design for the causal analysis uses politician-year observations for the 189 state-to-federal switchers. Figure 10 provides the pooled comparison. Politicians from resource levels 1–3 have mean Percent Text Reuse of 0.1526 before the switch and 0.0330 after it. That is a decline of about 0.12 percentage points. Politicians from resource levels 4–5 increase from 0.0603 to 0.0697 percentage points. I restrict the data to evaluate primary sponsorship patterns as opposed to co-sponsorship.

This comparison also helps assess the alternative explanation that lower-resource states exhibit more copycat legislation simply because they face less competition from other organized interests. Suppose that explanation drove the results. Entry into Congress brings greater organized-interest activity, so copycat sponsorship should fall for both origin groups. Instead, the pooled comparison shows a decline among lower-resource switchers and a small increase among higher-resource switchers.

Table 4: Congressional Entry and Percent Text Reuse

	Dependent variable: % Mean Text Reuse by Sponsor-Year	
	(1)	(2)
Post x Lower-Resourced	-0.122** (0.0569)	-0.124** (0.0577)
Politician and Year FEs	✓	✓
Controls		✓
Observations	2046	2046

Coefficient estimates from OLS regressions. The outcome is politician-year mean Percent Text Reuse. $\mathbb{T}$ denotes switchers from resource levels 1–3 and $\mathbb{C}$ denotes switchers from resource levels 4–5, so I interpret the interaction as $(\mathbb{T}_{post} - \mathbb{C}_{post}) - (\mathbb{T}_{pre} - \mathbb{C}_{pre})$. Standard errors are clustered at the politician level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Table 4 formalizes this comparison. Specification 1 reports an estimate of -0.122 (s.e. 0.0569), and Specification 2 reports -0.124 (s.e. 0.0577) after adding controls for legislative majority and governor party. These estimates imply that the pre-to-post difference in Percent Text Reuse declines by about 0.12 percentage points more for switchers from lower-resource statehouses than for switchers from higher-resource statehouses. That gap is roughly a quarter of a standard deviation of the politician-year outcome. Table A3 reports the same specification on the sample that drops trivial matches. The estimates are nearly unchanged at -0.121 and -0.123.

6.2.1 Event Study Analysis

Because politicians enter Congress in different years, Figure 11 first reports the Sun and Abraham (2021) interaction-weighted event study. I measure estimates relative to $t = -1$, the year before congressional entry. Table A4 reports the underlying coefficient estimates. The pre-period estimates are statistically insignificant. The estimates from $t = 0$ through $t = 5$ are negative and statistically significant, ranging from -0.119 to -0.159 percentage points. The negative post-switch estimates reflect differences relative to the omitted pre-switch period.

In the online appendix, Figure A11 adds controls for the legislative majority and governor party in the original state of each switcher. The estimates are nearly identical to the baseline in Figure 11, since no differential pre-trends appear. The post-switch estimates remain between approximately -0.12 and -0.16 percentage points through the first five years in Congress.

Figure 11: Event Study of Congressional Entry by Legislative Resources

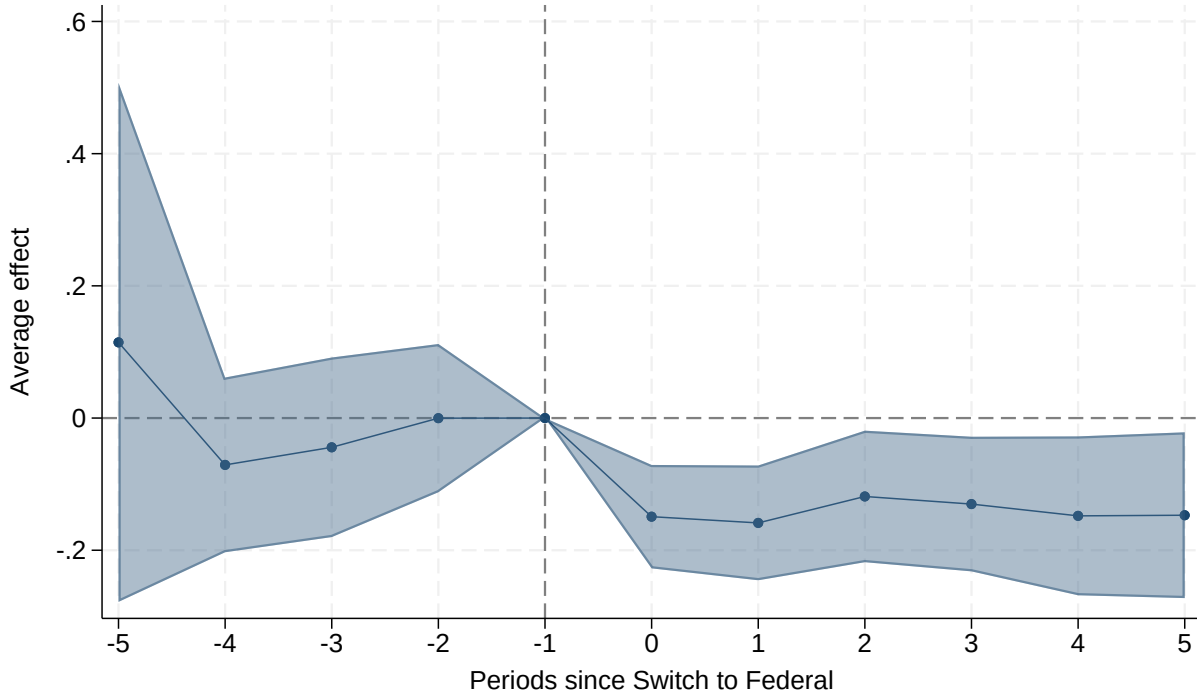


Figure 11: Baseline interaction-weighted event study following Sun and Abraham (2021). The outcome is politician-year mean Percent Text Reuse. The control cohort contains switchers from resource levels 4–5 and the treatment group contains switchers from levels 1–3. I measure event time relative to the first year in Congress and omit $t = -1$. Confidence intervals use standard errors clustered at the politician level.

Figures 11 and A11 together support the parallel-trends assumption. They also show a persistent reduction in Percent Text Reuse for lower-resource switchers after congressional entry. I treat the pre-trend evidence as support for, rather than proof of, the identifying assumption.

6.3 Partisan Patterns

The final descriptive results examine partisan sponsorship. Appendix Figure A14 compares Percent Text Reuse from ALEC and PLI templates by primary-sponsor party in the full sample of bills. Republican primary sponsors exhibit more ALEC-originated text reuse. Democratic primary sponsors exhibit more PLI-originated text reuse. The partisan gap is larger for ALEC than for PLI. This pattern is consistent with the model’s alignment term. It describes an association rather than a causal effect of party.

Appendix Figure A15 shows the same broad partisan pattern among laws. Mean PLI-originated text reuse is substantially lower than ALEC-originated reuse. ALEC and PLI

differ in both the number and subject matter of their templates. This comparison therefore cannot distinguish ideology from template composition. This leaves a descriptive analysis of special interest group templates at the topic level as a direction for future research.

7 Conclusion

This paper studies the state-level determinants of special interest group influence across all 50 states. I measure this influence through text reuse supplied by ALEC and PLI. The descriptive evidence points toward an inverse relationship between legislative capacity and legislative autonomy, although the strength of this relationship varies by how capacity is measured. The lower-resource indicator is consistently significant in Table 2 with the exception of the Column (2) estimate among bills. By contrast, neither salary nor staffing is statistically significant in Table 3 when controls for political ideology are introduced, in both the bill and law samples. Thus, the cross-state evidence is more clearly associated with overall institutional capacity than with any single observable component. This pattern is consistent with Prediction 1 of the model. Since K_s represents a bundle of internal legislative capacity – including the time legislators can devote to legislative work – the broader NCSL measure may capture dimensions that salary and staffing alone do not isolate, like time in session and the full or part-time intensity of legislative service in particular. Therefore, legislators with fewer internal resources may rely more heavily on externally supplied text when independent policy production is costly (Mulligan and Shleifer, 2005; Hall and Deardorff, 2006).

The empirical design of my switcher analysis provides the causal evidence. Politicians from lower-resourced statehouses reduce their Percent Text Reuse after entering Congress relative to politicians from higher-resourced statehouses. The two-way fixed effects estimate is approximately -0.12 percentage points, while the staggered event-study estimates range from approximately -0.12 to -0.16 percentage points during the first five years after congressional entry. These estimates are statistically significant in each post-transition year, while none of the pre-switch estimates are statistically significant. By holding the politician fixed while varying the institution, this design complements the within-state evidence in Garlick, Kroeger and Pellaton (2025).

One concern with the switcher design is anticipatory behavior. Fourniaies and Hall (2022) show that electoral incentives can affect bill sponsorship and other legislative activity. Extrapolating to this context, politicians may change how they allocate legislative effort while campaigning for Congress. However, the outcome is the share of bill text from templates among sponsored bills, and so changes in the total number of bills sponsored do not mechanically imply changes in the percent of text reuse. Moreover, both the treatment and

comparison groups consist of politicians who eventually enter Congress and therefore face similar incentives associated with seeking federal office.

A second limitation is that Congress has greater legislative resources than even the highest-resourced statehouses. Since all newly elected members must enter Congress as junior legislators, restricting the sample to the pool of state-to-federal switchers makes the treatment and comparison groups more comparable than contrasting switchers with politicians who never enter Congress. Even still, this sample restriction does not eliminate differences in the support or mentorship members receive after federal entry. Appendix Figure A6 reports the distribution of legislative tenure before and after the transition to Congress.

Taken together, the results support the hypothesis that there is a systematic relationship between legislative capacity and legislative autonomy from interest groups. These results are consistent with Prediction 1 of the model, which interprets this pattern as a substitution between internal drafting effort and externally supplied language. A next step in future research is to disaggregate the analysis by bill topic. Doing so would distinguish partisan differences in template use from differences in the subject matter of ALEC and PLI templates. Kang (2016) provides a framework for categorizing documents by topic in this context. This extension could clarify whether partisan asymmetries reflect ideology or template topic.

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9 Online Appendix

Table A1: Capacity and Percent Text Reuse (Noncopycat and > 10% Reuse)

	Dependent variable: Percentage of Text Reuse			
	Bills		Laws	
	(1)	(2)	(3)	(4)
Lower-Resourced	0.0513** (0.0237)	0.0172 (0.0182)	0.0312*** (0.0108)	0.0220** (0.00983)
Year FEs		✓		✓
Controls		✓		✓
Observations	1415237	1415237	394402	394402

Coefficient estimates from linear regressions. The outcome is Percent Text Reuse in the 50 states. Columns (1) and (2) report coefficient estimates on an indicator for lower-resourced statehouses in the full sample of bills. Columns (3) and (4) report coefficient estimates on an indicator for lower-resourced statehouses in the sample of laws. Even-numbered columns include year fixed effects and controls for house majority, senate majority, and governor party. Standard errors are clustered at the state level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Table A2: Capacity Components and Percent Text Reuse (Noncopycat and > 10% Reuse)

	Dependent variable: Percentage of Text Reuse			
	Bills		Laws	
	(1)	(2)	(3)	(4)
Salary	-0.000826** (0.000361)	-0.000333 (0.000358)	-0.000176 (0.000195)	-0.0000194 (0.000198)
Staff to Legislator Ratio	-0.00215 (0.00222)	-0.00263 (0.00260)	-0.00223 (0.00138)	-0.00262* (0.00153)
Year FEs		✓		✓
Controls		✓		✓
Observations	1415237	1415237	394402	394402

Coefficient estimates from linear regressions. The outcome is Percent Text Reuse from all 50 states. Salary captures the annualized 2021 legislator salary in thousands of dollars. Staff to Legislator Ratio captures the 2021 staff-to-legislator ratio. Every specification includes salary and staff jointly. Columns (1) and (2) report coefficient estimates from the full sample of bills. Columns (3) and (4) report coefficient estimates from the sample of laws. Even-numbered columns include year fixed effects and controls for house majority, senate majority, and governor party. Standard errors are clustered at the state level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Table A3: Two-Way Fixed Effects (Noncopycat and > 10% Reuse)

	Dependent variable: % Mean Text Reuse by Sponsor-Year	
	(1)	(2)
Post x Lower-Resourced	-0.121** (0.0589)	-0.123** (0.0597)
Politician and Year FEs	✓	✓
Controls		✓
Observations	2042	2016

Coefficient estimates from OLS regressions. Controls include legislative majority in the originating statehouse and governor party. I interpret the resulting estimates as $(\mathbb{T}_{post} - \mathbb{C}_{post}) - (\mathbb{T}_{pre} - \mathbb{C}_{pre})$, where $\mathbb{T}$ denotes switchers from lower-resourced statehouses (treatment group) and $\mathbb{C}$ denotes switchers from higher-resourced statehouses (control group). Standard errors are clustered at the politician level: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$.

Note: Observations decline from column (1) to column (2) because the controlled specification excludes observations without the required political controls.

Table A4: Interaction-Weighted Event Study

	(1)	(2)
t = -5	0.115 (0.200)	0.115 (0.200)
t = -4	-0.0709 (0.0675)	-0.0731 (0.0686)
t = -3	-0.0443 (0.0693)	-0.0455 (0.0705)
t = -2	-0.000126 (0.0572)	-0.00270 (0.0587)
t = 0	-0.149*** (0.0399)	-0.153*** (0.0408)
t = 1	-0.159*** (0.0443)	-0.164*** (0.0451)
t = 2	-0.119** (0.0508)	-0.122** (0.0519)
t = 3	-0.130** (0.0520)	-0.131** (0.0524)
t = 4	-0.148** (0.0613)	-0.150** (0.0623)
t = 5	-0.147** (0.0640)	-0.151** (0.0647)
Politician and Year FEs	✓	✓
Controls		✓
Observations	2046	2020

This table reports the event-study coefficient estimates underlying Figure 11 (column 1) and Figure A11 (column 2). I omit $t = -1$ as the reference period, the year before a politician transitions to the U.S. Congress. Standard errors are clustered at the politician level. Column (2) includes controls for the legislative majority and governor party in the original state of the politician. Observations decline from columns (1) to (2) because Nebraska is a nonpartisan statehouse, so legislative majority is not applicable for that state.

Figure A1: Pet Insurance Act Template Example

PET INSURANCE ACT

More than four million pets, mostly cats and dogs, are covered by their own health insurance policies. And yet, pet insurance is nearly unregulated and it's difficult for potential customers to know what they're really buying. The Pet Insurance Act, based on model legislation from the National Association of Insurance Commissioners, creates a legal framework for the sale of health insurance for pets.

Note: This model is very closely based on the 2022 model act published by the National Association of Insurance Commissioners.

Section 1. Short Title

This Act shall be known as the "Pet Insurance Act."

Section 2. Scope and Purpose

A. The purpose of this Act is to promote the public welfare by creating a comprehensive legal framework within which Pet Insurance may be sold in this state.

B. The requirements of this Act shall apply to Pet Insurance policies that are issued to any resident of this state, and are sold, solicited, negotiated, or offered in this state, and policies or certificates that are delivered or issued for delivery in this state.

<https://publicleadershipinstitute.org/model-bills/consumer-protection/pet-insurance-act/>

Pet Insurance Act - Public Leadership Institute

C. All other applicable provisions of this state's insurance laws shall continue to apply to Pet Insurance except that the specific provisions of this Act shall supersede any general provisions of law that would otherwise be applicable to Pet Insurance.

Section 3. Definitions—If a pet insurer uses any of the terms in this Act in a policy of pet insurance, the pet insurer shall use the definition of each of those terms as set forth herein and include the definition of the term(s) in the policy. The pet insurer shall also make the definition available through a clear and conspicuous link on the main page of the pet insurer or pet insurer's program administrator's website. Nothing in this Act shall in any way prohibit or limit the types of exclusions pet insurers may use in their policies or require pet insurers to have any of the limitations or exclusions defined below.

As used in this Act:

It is enacted by the General Assembly as follows:

SECTION 1. Title 27 of the General Laws entitled "INSURANCE" is hereby amended by adding thereto the following chapter:

CHAPTER 82

PET INSURANCE ACT

27-82-1. Scope and purpose.

(a) The purpose of this chapter is to promote the public welfare by creating a comprehensive legal framework within which pet insurance may be sold in this state.

(b) The requirements of this chapter shall apply to pet insurance policies that are issued to any resident of this state and are sold, solicited, negotiated, or offered in this state, and policies or certificates that are delivered or issued for delivery in this state.

(c) All other applicable provisions of this state's insurance laws shall continue to apply to pet insurance except that the specific provisions of this chapter shall supersede any general provisions of law that would otherwise be applicable to pet insurance.

27-82-2. Definitions.

(a) If a pet insurer uses any of the terms in this chapter in a policy of pet insurance, the pet insurer shall use the definition of each of those terms as set forth herein and include the definition of the term(s) in the policy. The pet insurer shall also make the definition available through a clear and conspicuous link on the main page of the pet insurer or pet insurer's program administrator's website.

Figure A1: The left-hand side shows a 2022 Public Leadership Institute (PLI) template on pet insurance. The right-hand side shows Rhode Island House Bill 7435 from the 2024 General Assembly. The custom search engine identifies the bill as reusing text from the PLI template and measures a 62.35% match. The gold highlights correspond one-to-one across the two documents and indicate text reuse.

Figure A2: Honesty in Lawyering Template Example

Section 2. (Findings and Purposes) (A) Findings. – The legislature finds that: (1) State courts have held that Legislatures have constitutional authority to enact legislation affecting business or entrepreneurial aspects of the practice of law, as well as attorney misconduct that is against the public interest;^[1] (2) The severity and number of high-profile episodes of unlawful or deceitful attorney practices nationally have exposed specific laws and rules, regulating either attorney business practices or misconduct against the public interest, that may not assure the public that such misconduct will be timely exposed or that the laws and rules will be adequately enforced in [the State]; and (3) Legislating specific measures to guard against such attorney misconduct is essential for protecting consumers and the public interest. (B) Purposes. – The purposes of this Act are: (1) To establish needed and greater protection for average consumers of legal services against unlawful or deceitful practices of attorneys; and (2) To provide transparency requirements and more checks and balances to expose, curb, and rectify attorney misconduct that violates the public interest. Section 3. (Substantive Provisions) (A) Attorney Disclosures and Requirements Related to Business Dealings With Clients and the Public. An Attorney admitted to the [state bar association] or otherwise permitted to practice law in [State] shall be required to comply with the following standards in his or her relations with any client, potential client, or other member of the public: (1) The Attorney shall affirm in writing in any Agreement to provide legal services that the Attorney, and/or those with whom he is in partnership or are otherwise employed by or affiliated with the Attorney's entity of legal practice, possesses the ability, time, and resources to provide those legal services adequately and competently;^[2] (2) The Attorney shall fully disclose in any Agreement to provide legal services any agreement or intent for an Outside Counsel, defined as an attorney not in partnership with or employed by the Attorney's entity of legal practice, to provide any of the legal services pursuant to the Agreement;^[3] The disclosure shall include the scope and reasonably anticipated costs associated with engaging such Outside Counsel. The Attorney must amend the Agreement and receive the client's written consent to engage an Outside Counsel should the agreement or intent to engage the Outside Counsel arise after the Agreement is effectuated. (3) In any Contingent Fee Agreement, defined as any agreement to provide legal services where the Attorney's fee is contingent, in whole or in part, upon a judgment being rendered in favor of or a settlement being obtained for a client and is either a fixed amount or an amount to be determined by a specified formula, including, but not limited to, a percentage of any judgment rendered in favor of or settlement obtained for the client;^[4] (a) The Attorney shall fully disclose all fees and costs reasonably anticipated to be incurred to provide the legal services, and provide an explanation of how the contingent fee will be calculated and the manner in which costs will be handled, both while the matter is pending and at resolution;^[5] The attorney shall also disclose the reasonably anticipated number of hours each attorney is likely to spend to provide said legal services. (b) The Attorney shall provide a client with three (3) business days to review and cancel the Agreement, and the Attorney shall conspicuously disclose in the Agreement this right to cancel;^[6] (c) The Attorney shall not acquire from a client absolute authority to control major decisions in the matter. (d) The Attorney, during representation, shall have a duty to communicate timely and adequately so that a client is properly informed about his or her matter when the client inquires;^[7] The Attorney shall also provide clients in a reasonable time with copies of any complaint, any answer or reply, and any other pleading or document served or received in the matter that materially impacts the client's interests in the matter. The Attorney shall notify the client in a reasonable time of any settlement offer, dispositive motion, court ruling and other material development affecting the client's principal interests. (e) The Attorney, if he or she becomes entitled to compensation or reimbursement of costs under that Contingent Fee Agreement, shall provide the client (or the lead plaintiff(s) and the court in a public filing where the Attorney represents a class) with a signed closing statement at the time of or prior to the receipt of such compensation or costs and a complete accounting of all financial transactions related to the provision of legal services;^[8] including - (f) The amount of the contingent fee, including any division of the contingent fee with any Outside Counsel. MISSISSIPPI LEGISLATURE 2016 Regular Session To: Judiciary A By: Representatives Brown, Boyd House Bill 1335 AN ACT TO CREATE THE HONESTY IN LAWYERING ACT; TO REQUIRE ATTORNEYS TO MAKE CERTAIN DISCLOSURES REGARDING FEE ARRANGEMENTS; TO PROVIDE THAT ATTORNEYS MAY BE SUBJECT TO CERTAIN PENALTIES; AND FOR RELATED PURPOSES. BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MISSISSIPPI: SECTION 1. This act shall be known and may be cited as the "Honesty in Lawyering Act." SECTION 2. The Legislature finds that: (a) State courts have held that legislatures have constitutional authority to enact legislation affecting business or entrepreneurial aspects of the practice of law, as well as attorney misconduct that is against the public interest; (b) The severity and number of high-profile episodes of unlawful or deceitful attorney practices nationally have exposed specific laws and rules, regulating either attorney business practices or misconduct against the public interest, that may not assure the public that such misconduct will be timely exposed or that the laws and rules will be adequately enforced in Mississippi; and (c) Legislating specific measures to guard against such attorney misconduct is essential for protecting consumers and the public interest. SECTION 3. (1) An attorney admitted to The Mississippi Bar or otherwise permitted to practice law in Mississippi shall be required to comply with the following standards in his or her relations with any
--

Figure A2: The left-hand side shows an ALEC template on honesty in lawyering. The right-hand side shows Mississippi House Bill 1335. The custom search engine identifies the bill as reusing text from the ALEC template and measures an 80.91% match. The gold highlights correspond one-to-one across the two documents and indicate text reuse.

Figure A3: Victim and Witness Confidentiality Act Template Example

counsel, need the consent of a witness or victim in order to have access to the address or phone number. The Act would also establish procedures for scheduling interviews between the defense counsel, victims, and witnesses.

DRAFT

VICTIM AND WITNESS ADDRESS CONFIDENTIALITY ACT

Model Policy.

(Title, enacting clause, etc.)

Section 1. (Title.) This Act may be cited as the Victim and Witness Address Confidentiality Act.

Section 2. (Definitions.) As used in this Act:

(A) "Victim" means an individual who suffers direct or threatened physical, emotional, or financial harm as the result of the commission of a crime, or an immediate family member of a homicide victim or a minor victim.

(B) "Witness" means an individual who has witnessed the commission of a crime, or who is otherwise called upon to cooperate by law enforcement officers or prosecutors in the investigation of a crime.

Section 3. (Confidentiality of victim and witness addresses and telephone numbers.) The residence and business addresses and telephone numbers of any victim or witness to a crime shall be confidential. No report, paper, picture, photograph, court file, or other document that relates to a crime and contains the residence or business address or telephone number of a victim or witness, and that is in the custody or possession of any public officer or employee, including the prosecuting attorney, the police, and any clerks, officials, or employees of any state court, shall be made available for public inspection, unless the residence and business addresses and telephone numbers of victims and witnesses have been deleted. No such public officer or employee shall disclose the residence or business address or telephone number of such a victim or witness except to:

(A) the public officers and employees, including police, prosecutors, probation and prison officers and employees, and court officials and employees, not to include counsel for the defense, who are charged with the duty of investigating, prosecuting, or keeping records relating to the crime or the defendant, or with performing any other act when done pursuant to the lawful discharge of their duties;

(B) any government agency or entity that provides compensation or services to victims or witnesses, or that investigates or adjudicates claims for such compensation or services;

(C) any organization or group that has as its primary purpose the provision of counseling, services, or other assistance to victims of crime, and that requires the addresses or telephone numbers of victims to offer such services, and that is approved for receipt of such information in accordance with the provisions of Section 8, except that under no circumstances shall a victim's or witness' residence or business address or telephone number be disclosed to entities who seek this information for commercial purposes;

(D) any person or agency, upon written consent of the victim or witness or the parents, spouse, or other person legally responsible for the care of the victim or witness except as may otherwise be required or provided by the order of a court; or

(E) any person who, either prior to or after the trial of the case involving the victim or witness, makes application to a court having jurisdiction over the alleged crime, and is authorized by court order to receive such information. The court order shall issue only after:

(1) the person making the application demonstrates to the satisfaction of the court that good cause exists for disclosure to that person;

(2) the court is reasonably assured by the prosecuting attorney that the victim or witness is known not to be at risk of personal harm resulting from the disclosure, or is adequately protected from such risk; and

STATE OF NEW YORK

1447
2019-2020 Regular Sessions
IN ASSEMBLY
January 15, 2019

Introduced by M. of A. D. ROSENTHAL, M. G. MILLER -- read once and referred to the Committee on Governmental Operations

AN ACT to amend the civil rights law, in relation to confidentiality of victims and witnesses addresses and telephone numbers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The civil rights law is amended by adding a new section 50-f to read as follows:

§ 50-f. Confidentiality of victim and witness addresses and telephone numbers. 1. The residence and business addresses and telephone numbers of any victim or witness to a crime shall be confidential. No report, paper, picture, photograph, court file, or other document that relates to a crime and contains the residence or business address or telephone number of a victim or witness, and that is in the custody or possession of any public officer or employee, including the prosecuting attorney, the police, and any clerks, officials, or employees of any state court, shall be made available for public inspection, unless the residence and business addresses and telephone numbers of the victim and witness have been deleted. No such public officer or employee shall disclose the residence or business address or telephone number of such a victim or witness except to:

a. the public officers and employees, including police, prosecutors, probation and prison officers and employees, not to include counsel for the defense, who are charged with the duty of investigating, prosecuting, or keeping records relating to the crime or the defendant, or with performing any other act when done pursuant to the lawful discharge of their duties;

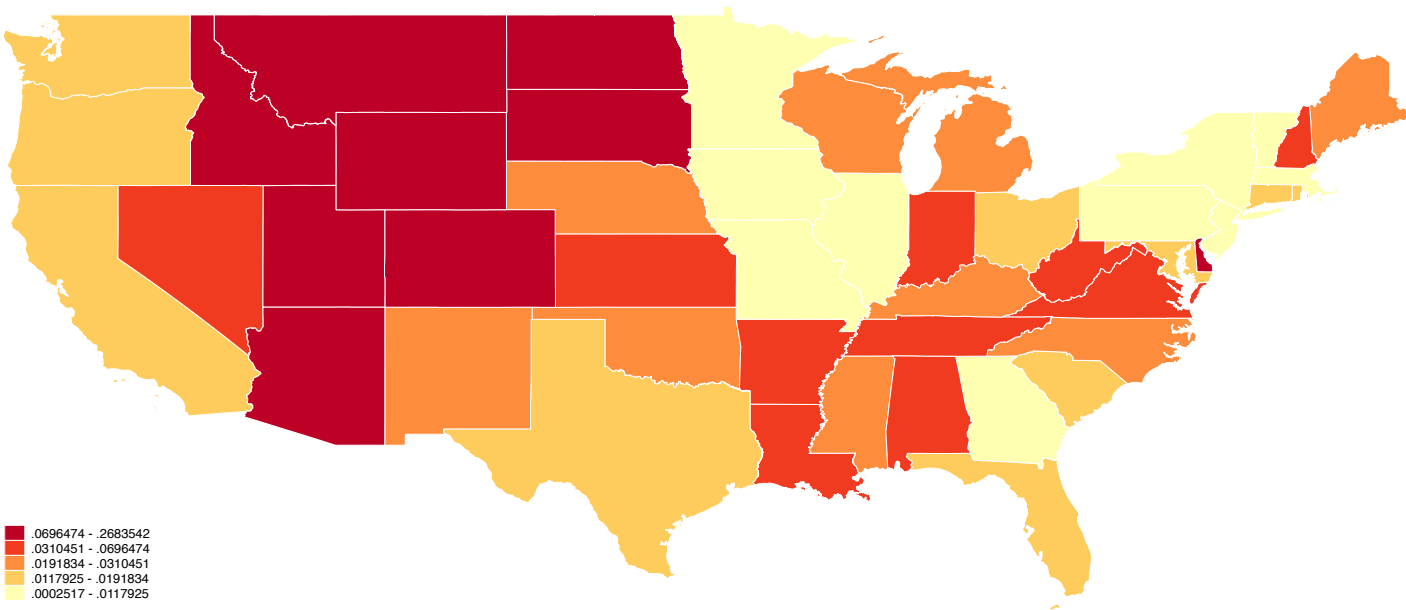
b. any government agency or entity which provides compensation or services to victims or witnesses, or which investigates or adjudicates claims for such compensation or services;

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [] is old law to be omitted.

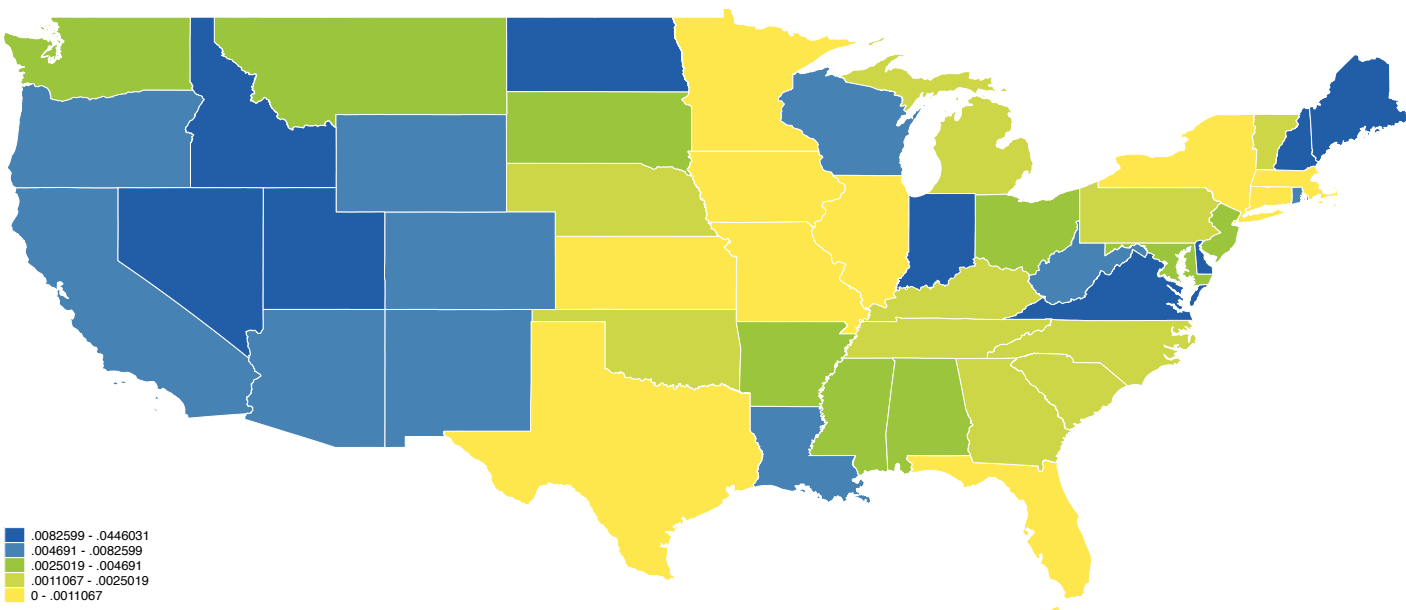
LBD01048-01-9

Figure A3: The left-hand side shows an ALEC template on victim and witness confidentiality. The right-hand side shows New York Assembly Bill 1447. The custom search engine identifies the bill as reusing text from the ALEC template and measures an 81.94% match. The gold highlights correspond one-to-one across the two documents and indicate text reuse.

Figure A4: Influence Maps of ALEC and PLI (Laws)



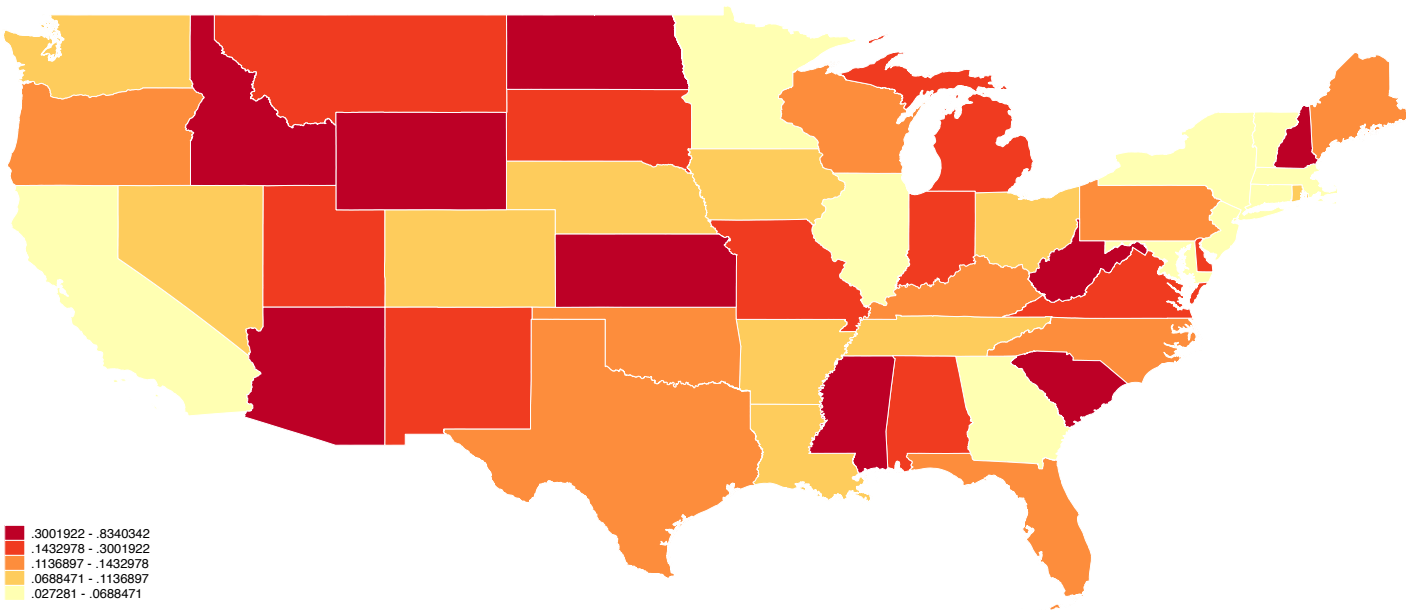
A: This map shows ALEC influence across American statehouses using average Percent Text Reuse from ALEC templates among laws.



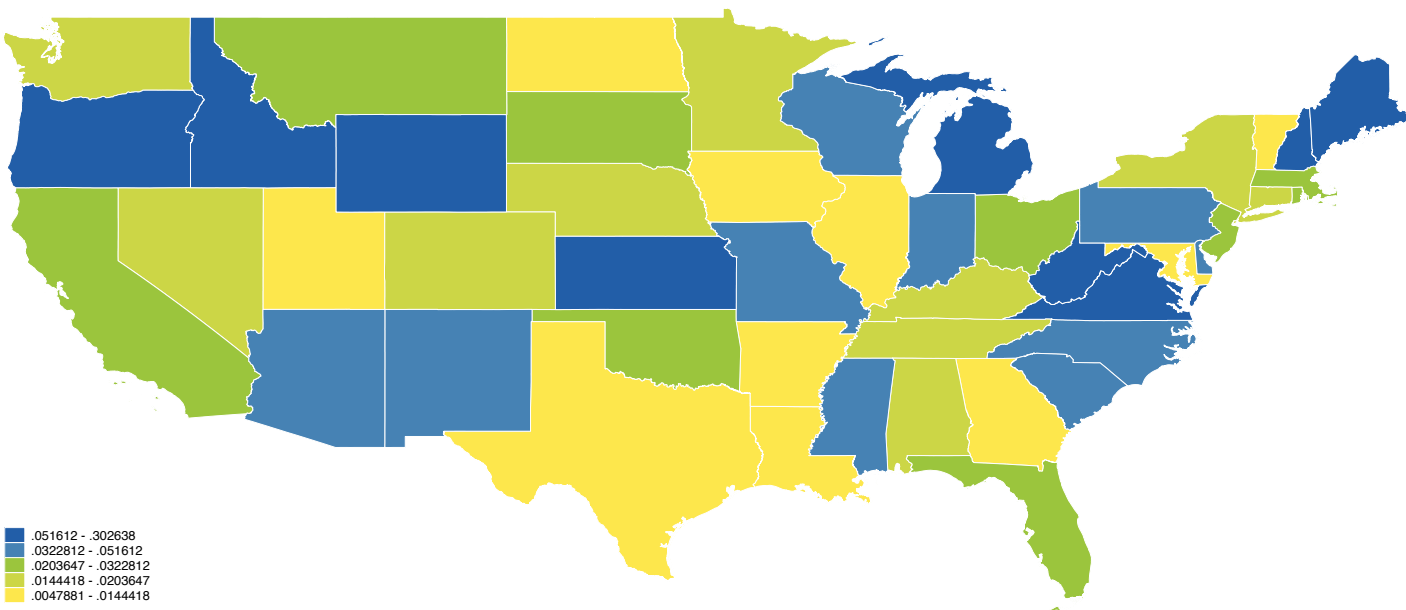
B: This map shows PLI influence across American statehouses using average Percent Text Reuse from PLI templates among laws.

Figure A4: Subfigure A (top) maps ALEC influence and subfigure B (bottom) maps PLI influence using Percent Text Reuse among laws.

Figure A5: Influence Maps of ALEC and PLI (Bills)



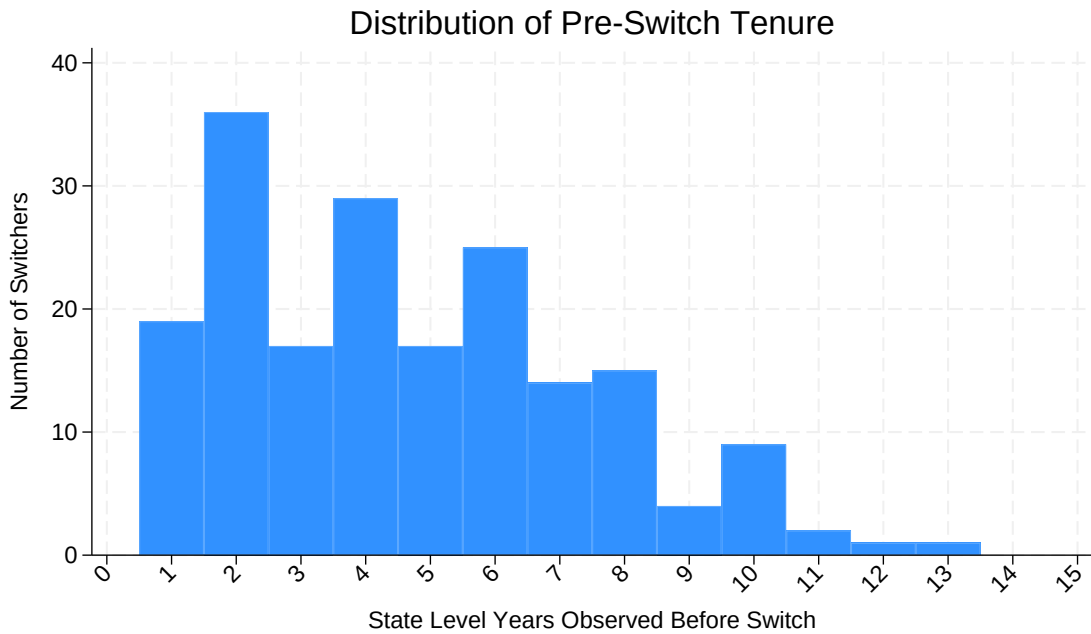
A: This map shows ALEC influence across American statehouses using average Percent Text Reuse from ALEC templates in the full sample of bills.



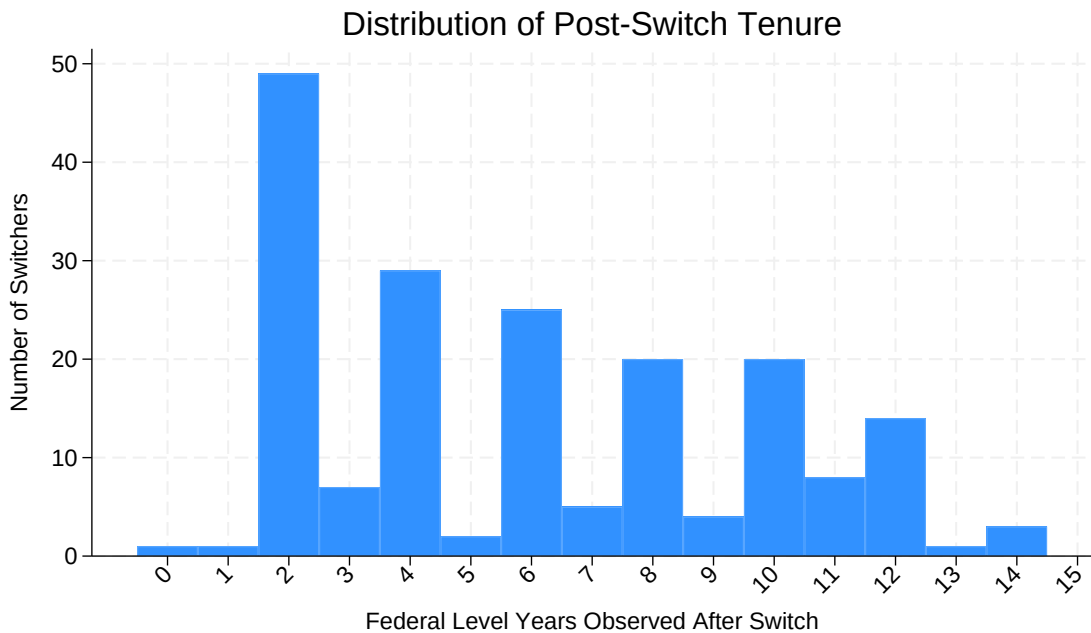
B: This map shows PLI influence across American statehouses using average Percent Text Reuse from PLI templates in the full sample of bills.

Figure A5: Subfigure A (top) maps ALEC influence and subfigure B (bottom) maps PLI influence using Percent Text Reuse in the full sample of bills from 2010–2024.

Figure A6: Years Observed Before and After Congressional Entry



A: This figure is a histogram of the observed years at the state level for politicians who transitioned to the U.S. Congress. The data cover 2010 to 2024.



B: This figure is a histogram of the observed years at the federal level for politicians who transitioned to the U.S. Congress. The data cover 2010 to 2024.

Figure A6: Subfigure A (top) and subfigure B (bottom) show histograms of observed years before and after each politician transitioned to the U.S. Congress. The data cover 2010 to 2024.

Figure A7: Partisan Share of Noncopycat Bill Primary Sponsorship

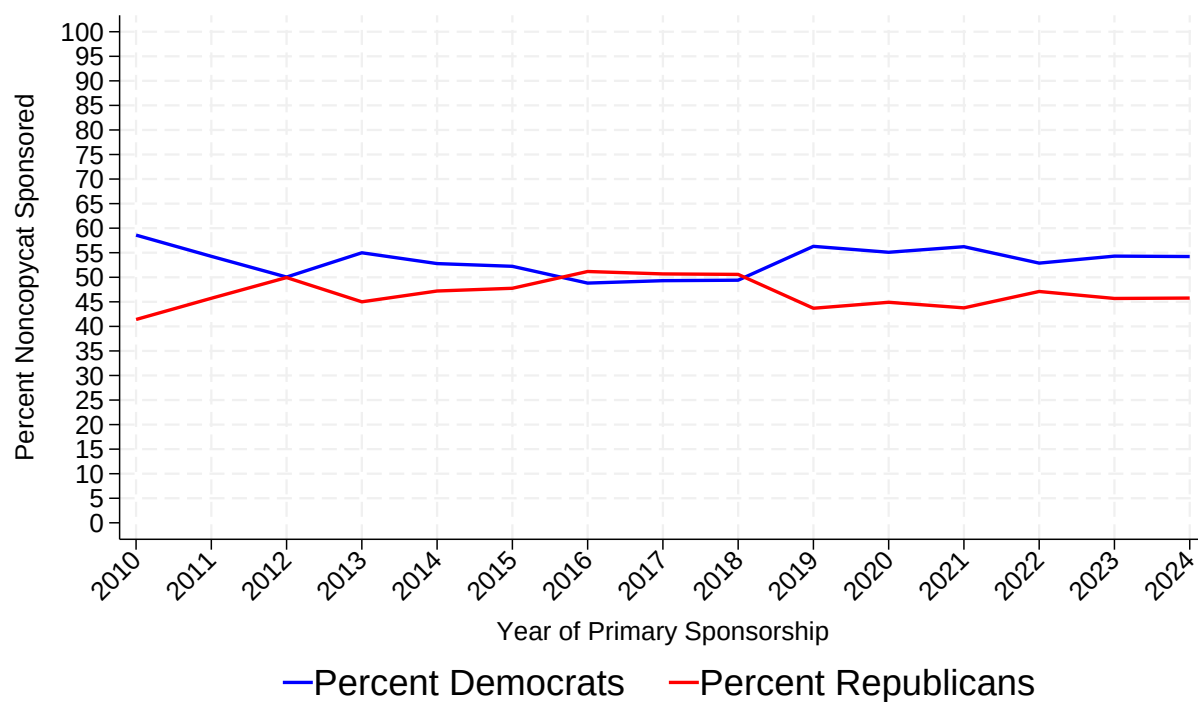


Figure A7: This figure compares noncopycat bill sponsorship among Democratic and Republican lawmakers. Both lines remain near 50%.

Figure A8: Percent Text Reuse by NCSL Resource Type

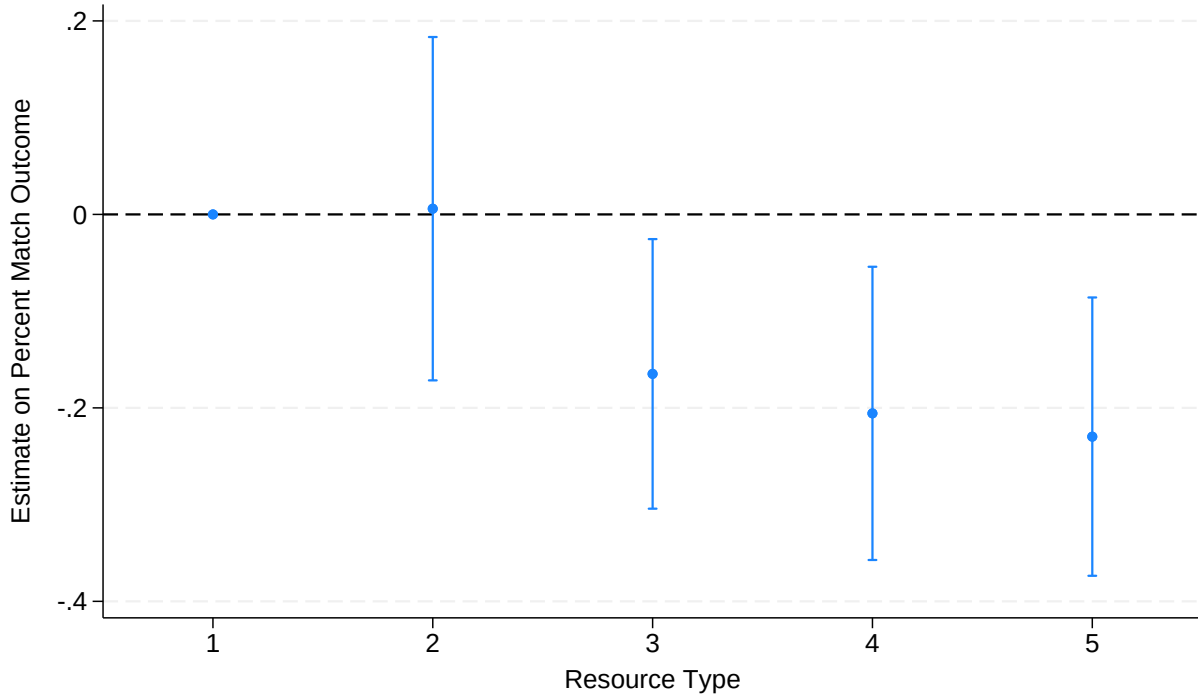


Figure A8: This figure plots mean template-originated text reuse in the full sample of bills in the 50 U.S. states since 2010, by NCSL resource type. NCSL categorizes resources into five levels from lowest (level 1) to highest (level 5). The confidence intervals use standard errors clustered at the state level, and resource category 1 is the baseline.

Note: The relationship is not perfectly ordinal across all five categories because the estimate for resource category 2 does not lie monotonically between categories 1 and 3. The main pattern is lower text reuse in the higher-resource categories relative to the lowest-resource baseline.

Figure A9: Distribution of Text Reuse Among Copycat Bills

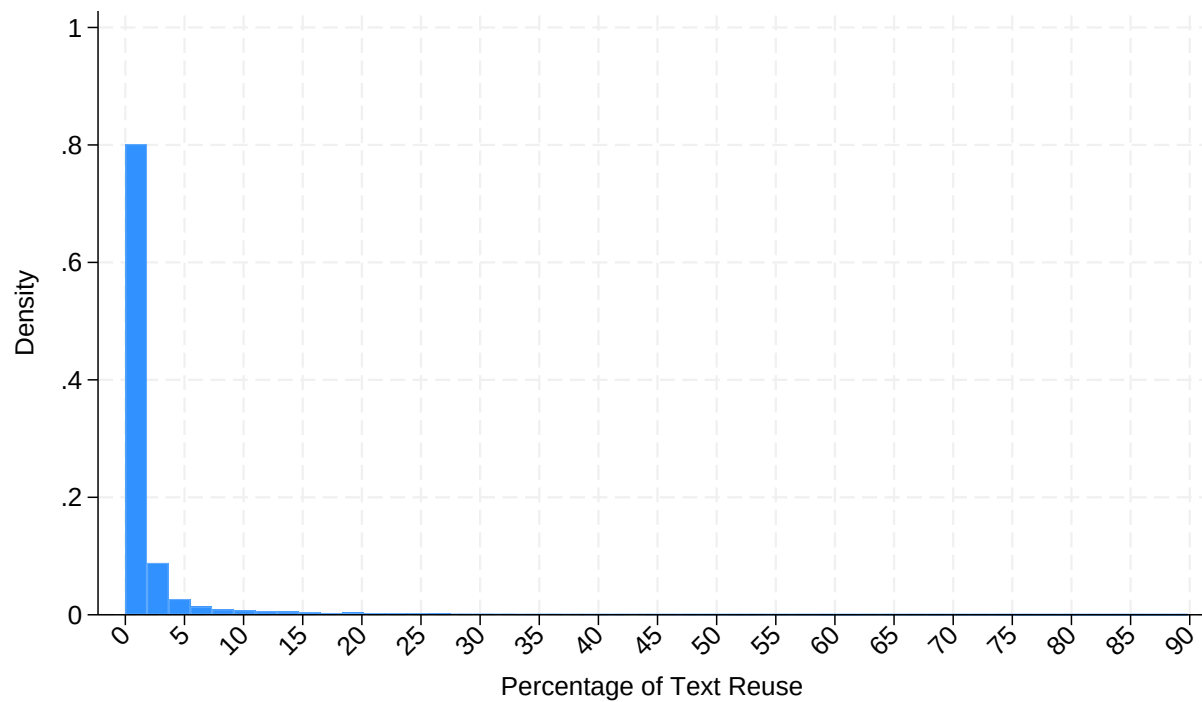


Figure A9: This figure shows the distribution of text reuse among copycat bills with a positive amount of detected text reuse in the 50 states. Legislation years range from 2010 to 2024.

Figure A10: Number of Matched Bills by Text-Reuse Threshold

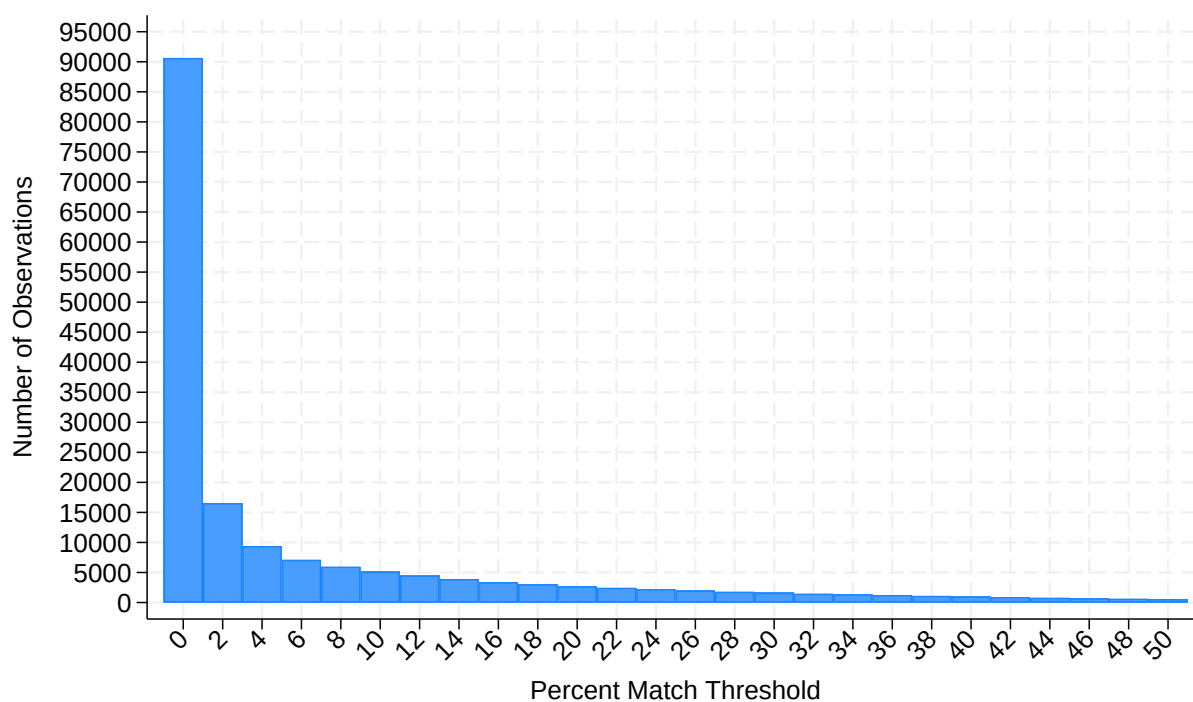


Figure A10: This bar graph shows the number of bills with text reuse above each threshold on the x-axis in the 50 states. Legislation years range from 2010 to 2024.

Figure A11: Event Study with Political Controls

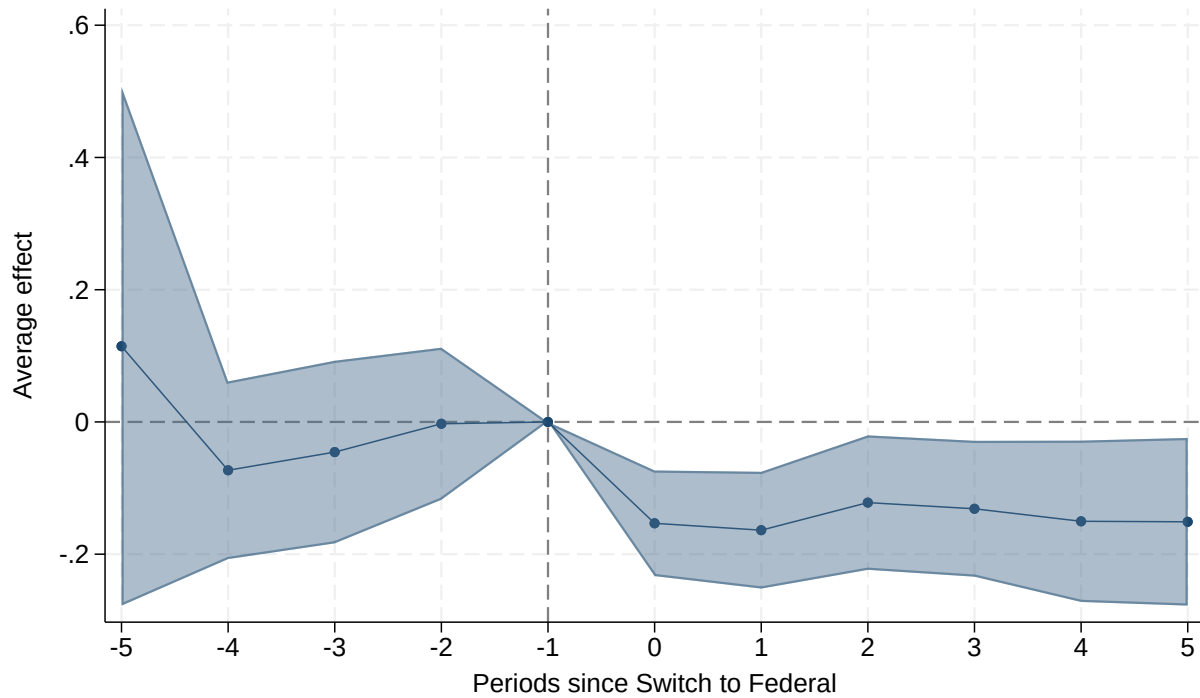
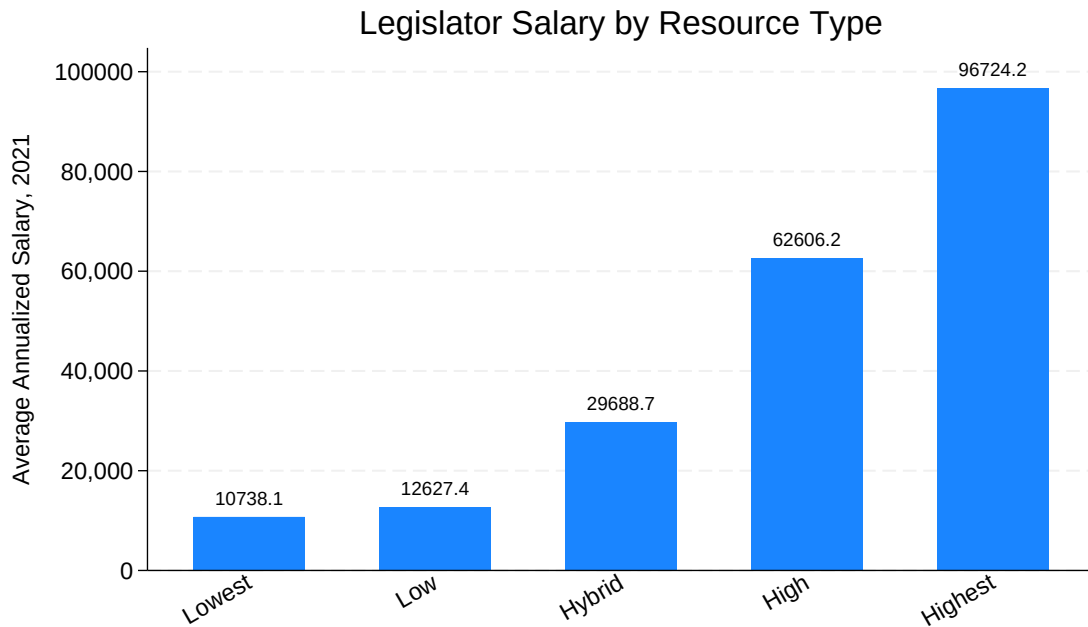
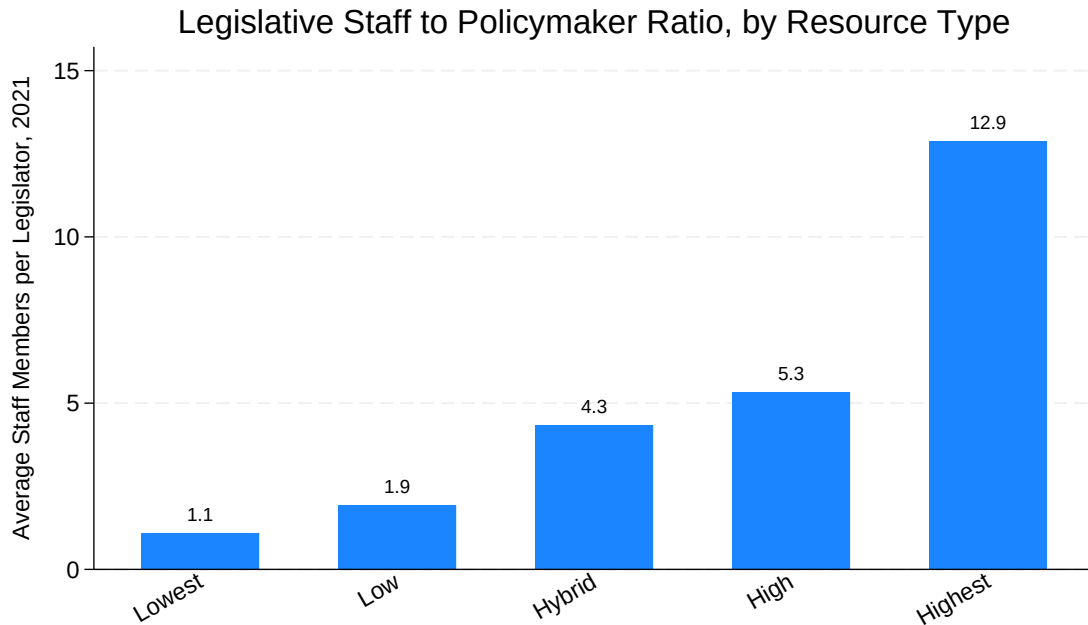


Figure A11: Robustness interaction-weighted event study following Sun and Abraham (2021). The specification adds controls for the legislative majority and governor party in the original state of each switcher. The specification otherwise uses the same outcome, treatment and control groups, omitted period, and clustering as Figure 11.

Figure A12: Legislative Capacity Decomposition



A: This figure shows average legislator salary by resource type across five levels from lowest to highest resourced statehouses. Quantities are in dollars, and the sample contains all 50 statehouses.



B: This figure shows the statehouse staff-to-legislator ratio by resource type across five levels from lowest to highest resourced statehouses. The sample contains all 50 statehouses.

Figure A12: Subfigure A (top) and subfigure B (bottom) decompose average legislative capacity by resource type.

Figure A13: Correlation Between Capacity Components

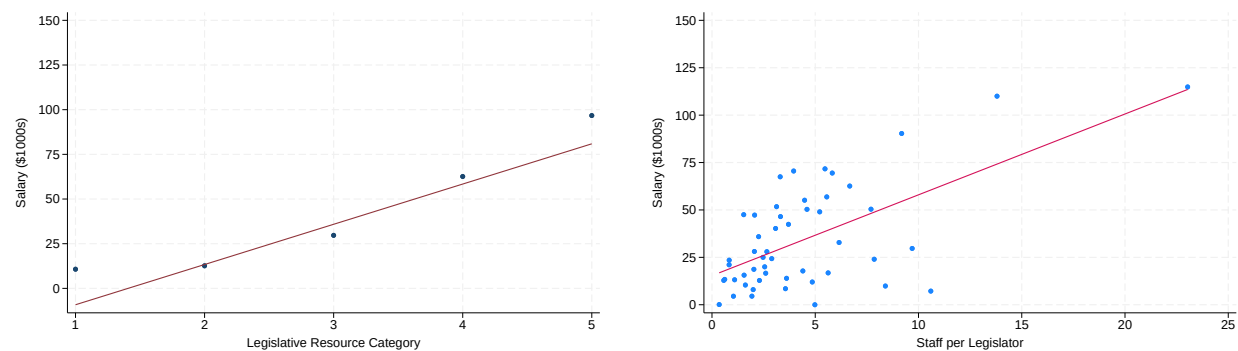


Figure A13: The left panel plots average legislator salary across the five NCSL legislative resource categories. The right panel plots legislator salary against staff per legislator. The 2021 cross section provides the salary and staff measures.

Figure A14: Partisan Sponsorship, Bills

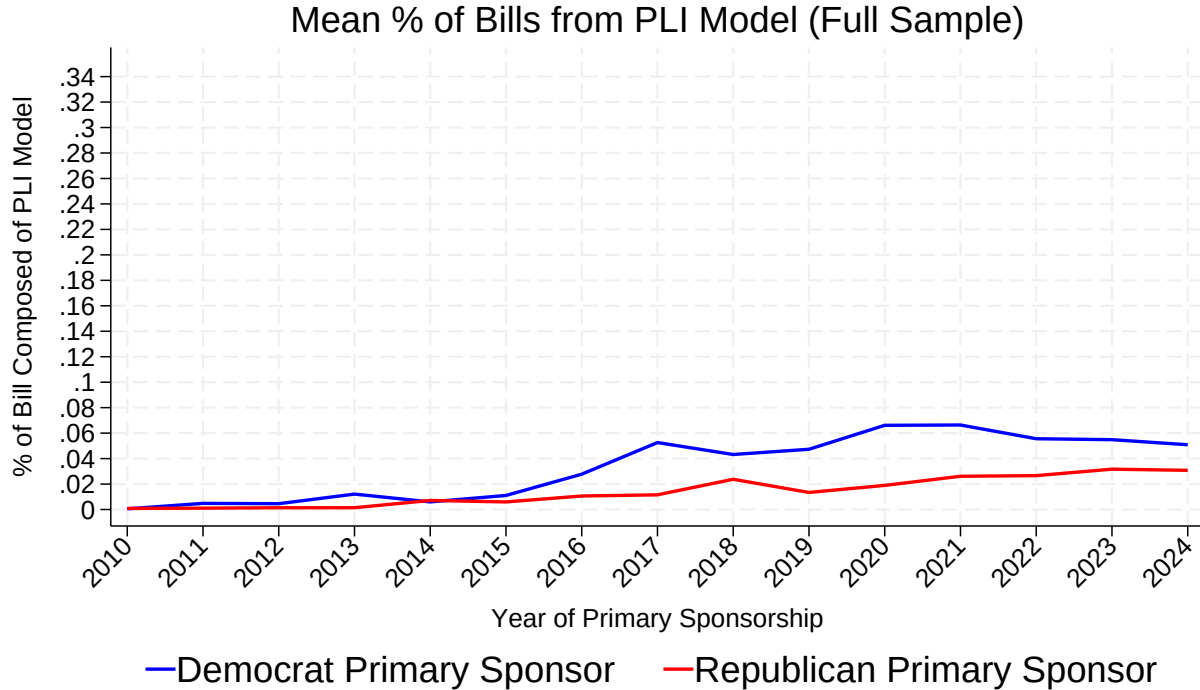
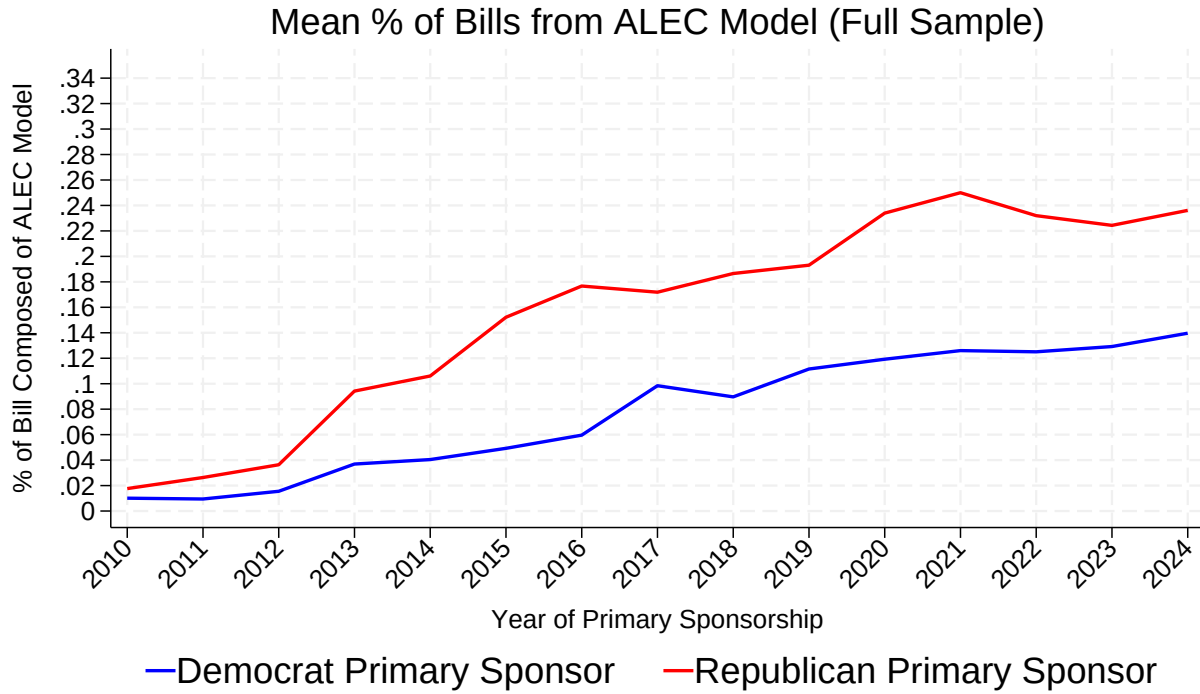


Figure A14: Mean Percent Text Reuse from ALEC templates (top) and PLI templates (bottom) in the full sample of bills by primary-sponsor party. The subfigures contain 8,603 Democrats and 9,751 Republicans.

Figure A15: Partisan Sponsorship, Laws

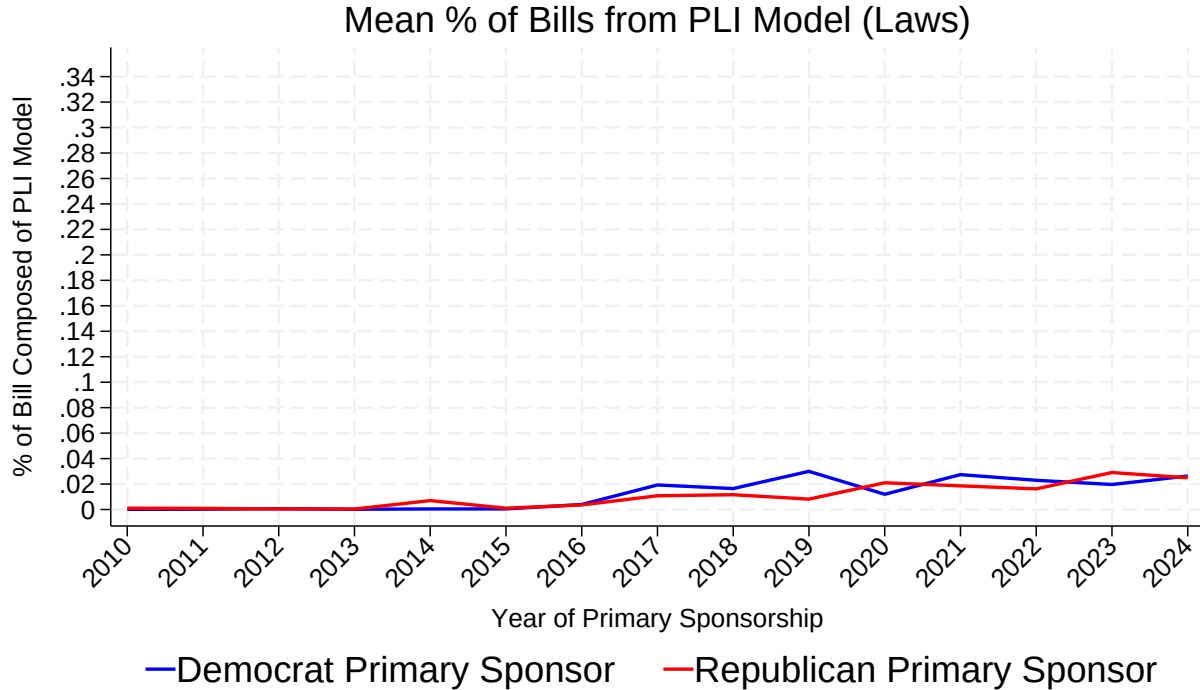
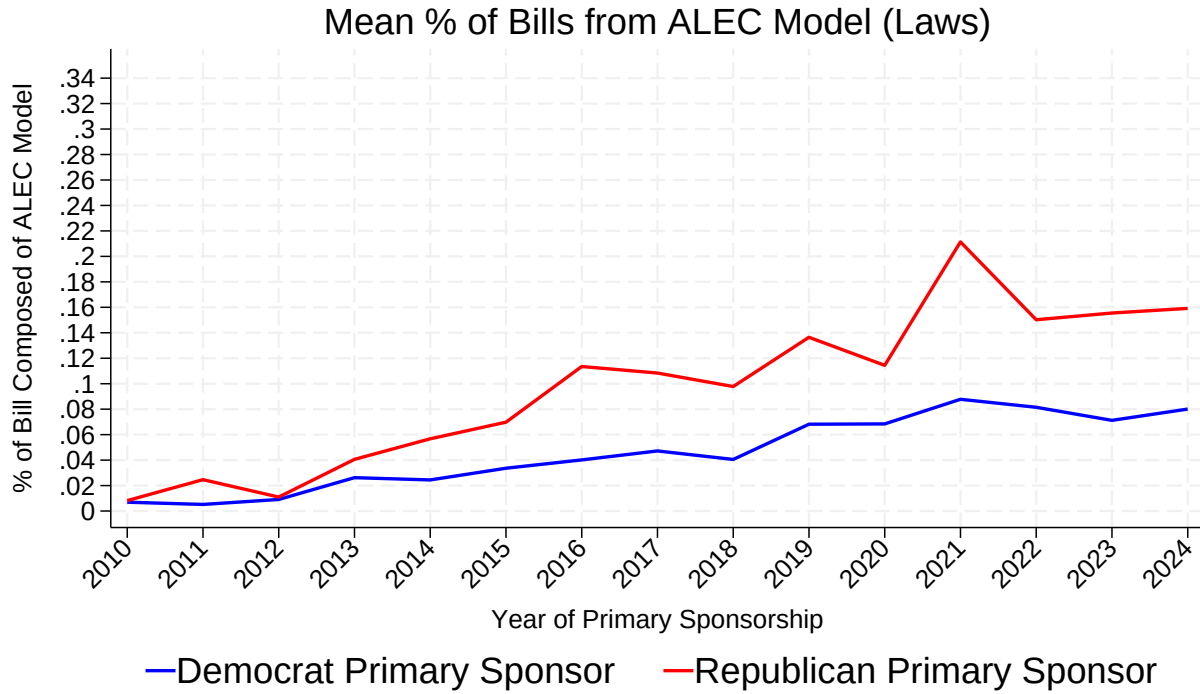


Figure A15: Mean Percent Text Reuse from ALEC templates (top) and PLI templates (bottom) among laws by primary-sponsor party. The subfigures contain 7,239 Democrats and 8,389 Republicans.